

MASTER DEFINED PROJECT SERVICES AGREEMENT

THIS MASTER DEFINED PROJECT SERVICES AGREEMENT (this "Agreement") is made effective as of 5/15/2017 (the "Effective Date") between XYZS GROUP, INC., a [REDACTED] (referred to hereinafter as ("XYZs")) and ABC [REDACTED] Vendor") (each, a "Party" and together the "Parties"), with reference to the following facts:

- A. Vendor is experienced in providing defined project services.
- B. XYZs desires to engage Vendor to provide defined project services it may need from time to time.
- C. XYZs and Vendor further desire that services may be provided hereunder by Vendor to Affiliates (as hereinafter defined) of XYZs.

NOW, THEREFORE, for and in consideration of the foregoing premises and the mutual undertakings set forth below, the Parties agree as follows:

I. SUBJECT OF THIS AGREEMENT AND WORK ORDER

- (a) Creation and Delivery of Project Deliverables. Vendor and XYZs are hereby entering into a binding written agreement pursuant to which Vendor shall, as requested by XYZs, utilize its staff, W-2 Employees ("**Employees**") and other representatives (collectively, "**Staff**") who have the needed training, experience, and qualifications to create and deliver the Project Deliverables (as hereinafter defined) and services requested by XYZs (collectively, the "**Services**"). The Services shall be described and set forth in work orders (each a "**WO**") which may from time to time be executed by the Parties utilizing the WO template attached hereto as Exhibit A or other written documentation signed by the Parties or their Affiliates and incorporated herein by this reference (the Services provided for in each WO or other documentation are referred to herein as a "**Project**", and all of the Services provided for in all WOs or other documentation entered into hereunder are referred to herein, collectively, as the "**Projects**"). The Parties agree that certain services have been provided by Vendor to XYZs pursuant to the Master Defined Project Services Agreement between the Parties with an effective date of November 14, 2016 (the "2016 MSA"). All Services performed pursuant to or governed by the 2016 MSA up to the Effective Date shall, from and after the Effective Date, be governed by, and subject to all of the rights, duties, and obligations set forth in, this Agreement.
- (b) Suspension. Notwithstanding anything to the contrary contained herein, if any problem or dispute arises between the Parties except for non-payment of Fees, in no event nor for any reason and unless and until authorized by a court of competent jurisdiction, shall Vendor interrupt the performance of the Services or any other obligation hereunder, disable any equipment used in the Services, or perform any other action that prevents, slows down, or reduces in any way the Services or XYZs' ability to conduct its business.
- (c) Additional Services. If additional Services are to be provided to XYZs or any XYZs Affiliate by Vendor or any Vendor Affiliate under this Agreement, such additional Services shall be described and agreed upon in a separate WO. Each such separate WO shall be deemed for all purposes of this Agreement to be a WO hereunder and shall incorporate by express or implied reference this Agreement as amended or supplemented from time to time by mutual agreement in writing between the Parties. If a XYZs Affiliate is receiving, or a Vendor Affiliate is providing, any Services or Deliverables (as hereinafter defined) hereunder, then the references herein to "XYZs", "Vendor", "Party", and "Parties" shall apply to such recipient and provider Affiliates. All the rights and obligations of XYZs and Vendor (including Representatives (as hereinafter defined) of each) as set out in this Agreement shall apply respectively to the parties signing the applicable WO. If there is any conflict or ambiguity between the terms and conditions of this Agreement on the one hand and any amending or modifying clause of an executed WO on the other hand, the provisions of the WO shall prevail.
- (d) Latent Defects. Any claim by XYZs that any Project Deliverable fails to meet the specifications and warranties set forth herein and in the applicable Work Order shall be made in accordance with the terms set forth in this Agreement and such Work Order, except in the case of any latent defect or deficiency or

other non-compliance with the requirements and warranties set forth herein and in such Work Order that could not reasonably have been discovered during the acceptance process for the Project Deliverable (a "Latent Defect"). In the event of the discovery of any Latent Defect after acceptance of any Project Deliverable, XYZs will notify Vendor in writing of such Latent Defect within thirty (30) days of such discovery. Vendor shall remedy any Latent Defect within a reasonable period of time or as set forth in the applicable Work Order (1) Vendor's failure to do so shall be deemed a default hereunder and (2) XYZs shall have all remedies available to it for Vendor's failure to deliver the Project Deliverable in conformance with the specifications and warranties set forth herein and in the Agreement.

- (e) Technology Security. Vendor shall comply in all respects with the XYZs Technology Security Policy attached hereto and incorporated herein as Attachment 2.
- (f) Anti-Fraud Training. If the Project Deliverables relate to the processing, investigating, or litigating of, or otherwise pertain to, (1) the payment or denial of a claim, (2) an application for adjudication of a claim, or (3) any application for insurance, Vendor shall provide all of its Staff who work on the Project with the appropriate anti-fraud training in compliance with the Insurance Fraud Prevention Act ("**IFPA**") and all applicable laws, codes and regulations. Vendor shall provide XYZs with an annual report executed by an Officer of the company certifying compliance with all provisions of the IFPA and all applicable laws, codes and regulations.

2. VENDOR STAFF AND PROJECT CREATION AND DELIVERY

- (a) The Project Deliverables. Vendor shall create and deliver the Project Deliverables according to the obligations set out in this Agreement and each applicable WO and agrees that the Project Deliverables will be created (1) **with** the appropriate **degree** of skill, diligence, care, prudence and foresight consistent with industry standards, (2) within the rules of and in accordance with the professional standards which reasonably and ordinarily can be expected from skilled and experienced persons engaged in the same type of undertaking, (3) using sound, professional, state of the art and up to date practices consistent with industry standards and in application of the latest developments in technology to the extent commercially practical, and (4) in accordance with XYZs' instructions and directions, (5) in the best interests of XYZs and (6) in compliance with all applicable laws and regulations applicable to Vendor as a service provider. Vendor will immediately notify XYZs of any information, occurrences or omissions that come to its attention which may affect or are affecting adversely the creation and delivery of the Project Deliverables. Vendor shall regularly report to XYZs about the status and progress of its assignment. Vendor shall provide all equipment, tools and other materials required to create and deliver the Project Deliverables at its own expense. Vendor's Employees may be allowed to work on XYZs premises in space which XYZs may choose to provide, but Vendor's non-employed Staff will not regularly work on the premises of XYZs and will not have space on XYZs' premises provided for them. All of Vendor's Staff may attend occasional meetings on XYZs premises to discuss a Project. Vendor will determine the method, details and means of performance to deliver the Project Deliverables required under this Agreement and any WO. XYZs is not the employer of any person assigned by Vendor to work on a Project and shall have no right to, and shall not, control the manner or determine the method by which Vendor and Vendor's Staff create and deliver the Project Deliverables.
- (b) No Subcontracting. Vendor will not subcontract to any person or entity its obligations under this Agreement, with the exception that Vendor may subcontract with an entity that (1) is wholly owned and controlled by Vendor or (2) is approved in advance and in writing by XYZs, and in either case so long as Vendor's obligations under this Agreement remain unchanged by any such subcontracting. Vendor will ensure that it has engaged sufficient personnel with the expertise required for the successful provision of the Project and to comply with all of the requirements established by this Agreement.
- (c) Fitness. Vendor and Vendor's Staff shall comply with all of the following requirements (the "**Fitness for Duty Requirements**") while at or en route to or from any premises (including leased premises) of XYZs:
 - (I) Vendor's Staff:
 - (A) shall report for work in a professional manner fit to do their job;
 - (B) shall not be under the influence of or in possession of any alcoholic beverages or of any controlled substance (except a controlled substance as prescribed for such person by a physician

so long as neither the performance of Vendor's Staff nor the safety of others is affected thereby);

- (C) shall not have been convicted of any serious criminal offense which is a felony involving theft, fraud or violence or which by its nature may have a discernible adverse impact on the business or reputation of XYZs;
 - (D) shall comply with XYZs' policies and procedures, guidelines and regulations governing safety, security, health and personal conduct set forth in Attachment 4, and which may be modified by XYZs from time-to-time in its sole discretion; and
 - (E) shall comply with all instructions of XYZs' security personnel.
- (2) Searches by XYZs authorized Representatives may be made of lockers, storage areas, vehicles, persons or personal effects on XYZs owned or leased property at various times without prior announcement. Such searches may be conducted using detection dog teams to search work areas and other common areas in order to detect evidence of unlawful drug use or the presence of pyrotechnics, explosives, firearms, weapons, or facsimiles thereof, alcoholic beverages and controlled substances ("**Prohibited Items**"). Prohibited Items shall not be brought onto, or kept on, XYZs premises.
 - (3) Vendor shall advise its Staff who are performing Services at any XYZs premises of the requirements of this Section 2(c) before they enter on the XYZs premises and shall immediately remove from the XYZs premises any such Staff determined to be in violation of the Fitness for Duty Requirements.
 - (4) Any supplies, equipment, tools or other items loaned by XYZs to Vendor shall be loaned solely as a convenience to Vendor. Vendor agrees that such items are being loaned "as is", and XYZs makes no **representations** as to the **condition, suitability for use, freedom from defect** or otherwise, of such items.
- (d) Work Orders. Each WO will contain all of the applicable information specified in Exhibit A. XYZs may submit proposed WOs to Vendor's Account Manager. If accepted by Vendor, Vendor's Operational Manager will communicate with XYZs, schedule Staff to perform the Project Services requested, and notify XYZs as appropriate.
- (e) Gifts and Gratuities. Vendor shall comply with all of the following policies and procedures regarding the giving of gifts and gratuities to XYZs personnel:
- (1) XYZs employees are not permitted, under any circumstances, to accept a cash gift or gratuity in any amount or in any form, including but not limited to investment opportunities or loans (except those from bona fide financial institutions), gift certificates, financial concessions or discounts (collectively, "**Gifts and Gratuities**"), and Vendor shall not offer or provide any Gifts and Gratuities to any XYZs employee in connection with, arising out of, or in any way connected to any business relationship between XYZs and Vendor.
 - (2) Acceptance of non-cash gifts and special concessions of any amount from any entity (other than XYZs or a XYZs Affiliate) by an employee of XYZs is not generally acceptable. The only exceptions are infrequent acceptance of perishable food items, if returning them is impractical, or items of a promotional or advertising nature, if the market value is less than \$25. Vendor shall not offer or provide to any XYZs employee any other non-cash gift or special concession.
 - (3) In general, XYZs employees may not accept invitations to social or recreational events from vendors. From time to time, however, there will be situations in the normal course of business where a certain employee's attendance is in XYZs' best interests. Participation in such events is limited to such events where, in fact, business related issues are the primary purpose, and Vendor shall not offer any XYZs employee an invitation to an event that fails to meet this requirement.
 - (4) Vendor shall promptly report to XYZs all gifts and gratuities offered to and/or accepted by a XYZs employee.
 - (5) Vendor shall instruct its Staff regarding the XYZs gifts and gratuities policy.
- (f) Vendor's Screening Obligations. Vendor shall conduct background checks of the Staff Member's as set forth in Exhibit B, hereto.

- (g) Law. Vendor shall comply with applicable federal, state, and local laws including Federal Executive Orders in paying wages and providing benefits to, and in all other aspects of its employment of Staff.
- (h) Systems. To the extent Vendor employees are required to use XYZs' enterprise business applications and processes in order to provide any Services, XYZs warrants and represents to Vendor, that such enterprise business applications and processes conform and shall continue to conform to all legal and regulatory requirements that XYZs is required to adhere to. If Vendor reasonably believes that any of such enterprise business applications and processes fail to conform to the above requirements, Vendor shall so notify XYZs. Vendor shall not be obligated to remediate any such failure. XYZs' failure to remediate any such failure will excuse Vendor from performing its corresponding obligations with respect to such Services. Vendor will incur no liability for relying and/or acting on any instructions provided by the XYZs; provided, however, that if Vendor has reason to believe that acting on any such instructions would cause XYZs to incur any damages or liability, Vendor shall so notify XYZs as soon as reasonably practicable.
- (i) Responsibility. Vendor and XYZs will perform their respective duties, obligations and responsibilities ("Responsibilities") set forth under this Agreement. XYZs' failure to perform its designated Responsibilities or any acts rendering Vendor's obligation impossible will excuse Vendor's obligation to perform its corresponding obligations under this Agreement. Vendor will incur no liability for relying and/ or acting on systems/ business processes, instructions and applications provided by XYZs.

3. REPRESENTATIONS, WARRANTIES AND COVENANTS

- (a) Vendor represents, warrants, and covenants the following in respect of the creation and delivery of the Project Deliverables and Vendor's other obligations under this Agreement, and shall notify XYZs in writing if any of the following changes in any material respect during the Term (as hereinafter defined):
 - (1) Organization, Good Standing and Qualification. Vendor is duly organized, validly existing and in good standing and has all requisite power and authority to carry on its business as now conducted. Vendor is duly qualified to transact business and is in good standing in each jurisdiction in which the failure so to qualify would have a material adverse effect on its business or properties.
 - (2) Authorization; Binding Obligation; Change of Control. All action on the part of Vendor, its officers, directors and stockholders necessary for the authorization, execution, and delivery of this Agreement has been taken. The performance of all obligations of Vendor hereunder constitute valid and legally binding obligations of Vendor, enforceable against Vendor in accordance with the respective terms hereof. If, at any time during the Term, there is a change of "control" (as defined in Section 1.5(a), below), Vendor shall notify XYZs in writing no later than ninety (90) days before the effective date of such change.
 - (3) Consents and Approvals; No Conflicts. The execution, delivery and performance by Vendor of this Agreement and the creation and delivery of Project Deliverables provided for herein do not and will not (i) violate, conflict with or result in a breach of any applicable law; (ii) violate or conflict with, result in a breach or termination of, constitute a default or give any third party any additional rights (including a termination right) under, permit cancellation of, result in the creation of an encumbrance upon any of their assets or properties under, or result in or constitute a circumstance which, with or without notice or lapse of time or both, would constitute any of the foregoing under any contract, agreement or other legally binding obligation to which Vendor may be a party or any of its assets or properties are bound; (iii) require the consent, authorization or approval of any other person not a party to this Agreement; or (iv) violate or conflict with any provisions of the certificate or articles of incorporation, charter, bylaws or similar organizational instruments of Vendor.
 - (4) Ability to Perform. Vendor possesses the technical and other knowledge and other abilities as per industry standards that are required to meet its obligations under this Agreement. No claim, litigation, proceeding, arbitration, investigation or material controversy is pending, has been threatened or is contemplated which would have a material adverse effect on its ability to enter into this Agreement or to create and deliver the Project Deliverables hereunder.

- (5) No Conflicts of Interest. Vendor is not aware of any circumstances which cause or may cause a conflict of interest and which would affect its obligations and the creation and delivery of the Project Deliverables. Vendor will immediately notify XYZs of any information, occurrences or omissions that come to its attention which may affect or are affecting adversely the creation and delivery of the Project Deliverables.
- (6) Compliance with Law. Vendor shall comply with all laws applicable to its personnel and the work performed pursuant to this Agreement. Vendor has and shall maintain throughout the term of this Agreement all professional and business licenses, certifications and similar requirements as required by any local, state, federal or accrediting requirements. Vendor is not and shall not be identified on a "watch list" maintained pursuant to law by any federal agency, such as the Office of Foreign Assets Control or the USA PATRIOT ACT, and takes appropriate steps to ensure that none of its vendors or subcontractors are identified on any such watch list.
- (7) No Interference. Vendor shall not at any time during the term of this Agreement or thereafter negligently or deliberately impair or render any of XYZs' computer systems, software or other equipment unusable or inoperable, or in any way deliberately take actions to impair or interfere with the operation of XYZs' computer systems or XYZs' business.
- (8) No Suspension. Notwithstanding anything to the contrary contained herein, except in the case of undisputed amounts that are due and payable hereunder, if any problem or dispute arises between the Parties, in no event nor for any reason and unless and until authorized by a court of competent jurisdiction, shall Vendor interrupt the performance of the Services or any other obligation hereunder, disable any equipment used in the Services, or perform any other action that prevents, slows down, **or** reduces in any way the Services or XYZs' ability to conduct its business.
- (9) Ownership of Materials. Vendor is the owner of all of its Pre-Existing Materials (whether tangible or intangible) and methodologies used in the creation and delivery of the Project Deliverables or has (and will have at all times during the term of this Agreement) the right to use, distribute, subcontract, and/or license them without any additional consent of any third party. Ownership of the Project Deliverables shall be determined pursuant to Section 7, below.
- (10) Project Deliverables. All Project Deliverables shall comply in all material respects with the specifications provided and any acceptance criteria stated in a WO, and as otherwise agreed upon by authorized Representatives of the Parties in writing. Vendor shall promptly correct or replace any Project Deliverable that does not meet this warranty at its own expense.
- (11) Taxpayer Identification Number. The Taxpayer Identification Number (TIN) shown below the Vendor signature line is its correct taxpayer identification number, and Vendor is not subject to backup withholding because: (1) Vendor is exempt from backup withholding, or (2) Vendor has not been notified by the Internal Revenue Service ("**IRS**") that Vendor is subject to backup withholding as a result of a failure to report all interest and dividends, or (3) the IRS has notified Vendor that Vendor is no longer subject to backup withholding.
- (12) Accessibility. If the Project Deliverables relate to web based content, Vendor shall ensure that all web-based information, programming, or content of any kind delivered pursuant to this Agreement meet the World Wide Web Consortium's Web Content Accessibility Guidelines 2.0, Level AA.
- (13) Harmful Code. Vendor has and shall continuously implement quality assurance procedures, including testing any software to be delivered to XYZs using commercially available virus testing utilities, to ensure that any software, e-mail or other electronic communication, data, or other items provided or delivered by Vendor to XYZs and all attachments, updates, upgrades, corrections and enhancements thereto are free of viruses, worms, Trojan Horses, software locks, backdoors, trapdoors, contaminants, and other malicious code that may harm the software or XYZs' systems. Vendor shall disclose to XYZs in the applicable WO, or in another written instrument or otherwise as agreed by the Parties, any open source software embedded in any software or other Project Deliverable delivered to XYZs. Vendor shall describe each component of such open
- (14) source software and provide XYZs with a copy of the applicable open source software license for such open source software components. If Vendor breaches the foregoing obligation, Vendor will assist XYZs in restoring its computer systems to their original condition.

- (15) Office of Foreign Assets Control. Neither Vendor nor, to Vendor's knowledge, any of its affiliates, partners, members, shareholders or other equity owners, and none of their respective employees, officers, directors, representatives or agents, is a person or entity with whom U.S. persons or entities are restricted from doing business under regulations of the Office of Foreign Assets Control (OFAC) (including those named on OFAC's Specially Designated and Blocked Persons List) or under any statute, executive order (including the September 24, 2001, Executive Order Blocking Property and Prohibiting Transactions with Persons Who Commit, Threaten to Commit, or Support Terrorism), or other governmental action.
- (16) Anti-Bribery Laws. Vendor and its Affiliates are not in violation and shall not violate the Foreign Corrupt Practices Act (15 U.S.C. Section 78dd-1, et. seq.) or any applicable Federal, state, local, or foreign anti-bribery laws. With respect to its performance under this Agreement, Vendor and its shareholders, directors, officers, employees, and agents will not, directly or indirectly through third parties, pay, promise or offer to pay, or authorize the payment of, any money or give any promise or offer to give, or authorize the giving of anything of value to any individual, entity, or government for purposes of corruptly obtaining or retaining business for or with, or directing business to, any person, including, without limitation, XYZs, Vendor or any of their Affiliates.
- (17) Anti-Money Laundering Laws. Vendor and its Affiliates are not in violation of, and shall not violate, applicable financial recordkeeping and reporting requirements, and the applicable anti-money laundering statutes of jurisdictions where the Vendor and its Affiliates conduct business, the rules and regulations thereunder and any related or similar rules, regulations or guidelines, issued, administered or enforced by any local, state, Federal or other governmental authority (collectively, the "Anti-Money Laundering Laws"), and no action, suit or proceeding by or before any governmental authority involving **the Vendor or any of its Affiliates with respect to the** Anti-Money Laundering Laws is **pending or threatened. Vendor has established an anti-money** laundering compliance program as required by the Anti-Money Laundering Laws.
- (b) XYZs represents, warrants, and covenants the following in respect of XYZs' obligations under this Agreement, and shall notify Vendor in writing if any of the following changes in any material respect during the Term (as hereinafter defined):
- (1) Organization. Good Standing and Qualification. XYZs is duly organized, validly existing and in good standing and has all requisite power and authority to carry on its business as now conducted. XYZs is duly qualified to transact business and is in good standing in each jurisdiction in which the failure so to qualify would have a material adverse effect on its business or properties.
 - (2) Authorization: Binding Obligation. All action on the part of XYZs, its officers, directors and stockholders necessary for the authorization, execution, and delivery of this Agreement has been taken. The performance of all obligations of XYZs hereunder constitute valid and legally binding obligations of XYZs, enforceable against XYZs in accordance with the respective terms hereof.
 - (3) Consents and Approvals: No Conflicts. The execution, delivery and performance by XYZs of this Agreement do not and will not (i) violate, conflict with or result in a breach of any applicable law; (ii) violate or conflict with, result in a breach or termination of, constitute a default or give any third party any additional rights (including a termination right) under, permit cancellation of, result in the creation of an encumbrance upon any of their assets or properties under, or result in or constitute a circumstance which, with or without notice or lapse of time or both, would constitute any of the foregoing under any contract, agreement or other legally binding obligation to which Vendor may be a party or any of its assets or properties are bound; (iii) require the consent, authorization or approval of any other person not a party to this Agreement; (iv) permit the acceleration of the maturity of any indebtedness of Vendor; or (v) violate or conflict with any provisions of the certificate or articles of incorporation, charter, bylaws or similar organizational instruments of Vendor.
 - (4) Ownership of Materials. XYZs is the owner of all of its Pre-Existing Materials (whether tangible or intangible) provided to Vendor hereunder or has (and will have at all times during the term of this Agreement) the right to use, distribute, subcontract, and/or license them without any additional consent of any third party.

- (5) Compliance with Law. XYZs shall comply with all laws applicable to its personnel and for the receipt of Services pursuant to this Agreement. XYZs has and shall maintain throughout the term of this Agreement all professional and business licenses, certifications and similar requirements as required by any local, state, federal or accrediting requirements.

4. PRICING, INVOICES AND PAYMENT

- (a) ASP Election. The Parties understand that XYZs has elected to utilize the services of an Administrative Services Provider ("**ASP**") as the agent of XYZs for certain services including but not limited to the processing of WOs, on-boarding of Staff, and the processing of invoices and payments hereunder. Further, XYZs has elected to utilize an electronic time card/vendor Management Software ("**VMS**") tool. Vendor agrees to cooperate fully with any ASP designated by XYZs and to fund the ASP and VMS fees, which shall not exceed three percent (3%) of Vendor's total monthly invoice. Vendor agrees that the ASP and VMS fees may be deducted from total monthly invoice fees otherwise to be paid. Vendor agrees to work diligently with any ASP designated by XYZs to resolve any disputes regarding payments.
- (b) Fees. The fees (hereinafter the "**Fees**") for the Project Deliverables will be invoiced to XYZs as set forth in the applicable WO executed by the Parties hereto. Fees payable hereunder are understood fully inclusive of any costs and expenses of Vendor and its staff and such costs and expenses are not subject to any separate payment except as explicitly set forth in a WO. If XYZs is billed on a "time and materials" basis, XYZs will not be billed for any holiday, vacation or PTO days, sick days, or any time away from the assignment, nor will XYZs be billed for overtime unless XYZs has authorized the overtime and Vendor has actually paid or incurred an obligation to pay same to a Staff member.
- (c) Expense Reimbursement. Vendor shall not be entitled to reimbursement for any expenses without the prior written authorization of XYZs. In order to be reimbursable, authorized expenses must be (1) actually incurred by Vendor in connection with its performance under this Agreement; (2) substantiated by receipts, vouchers and explanations; and (3) agreed to in advance in writing by XYZs,
- (d) Travel Expense. Travel and travel-related expenses shall only be reimbursable by XYZs as a result of a specific written request by XYZs and may be billed to XYZs only at actual cost, in conformity with XYZs' Travel Policy (as hereinafter defined), and substantiated by receipts, vouchers, and explanations. Expenses exceeding the limits provided for in the Travel Policy must be fully justified by Vendor and approved in advance by XYZs in writing. All expenses exceeding such limits (except any approved excess) will be Vendor's sole and entire responsibility. The term "**Travel Policy**" means the applicable airfare, hotel/motel, meal reimbursement, laundry, personal vehicle, rental car, taxi/airport shuttle, and tip expense reimbursement limitations determined by XYZs and provided by XYZs to Vendor from time-to-time. There shall be no reimbursement of expenses of any kind for entertainment or personal phone calls. XYZs' current Travel Policy is attached hereto as Addendum 3 and Vendor agrees to be bound thereby. No change in the XYZs Travel Policy during the Term shall reduce the amount or rate of any such reimbursement (as the case may be) except with the written agreement of Vendor.
- (e) Purchase Orders. Following the signing of any WO, XYZs shall issue to Vendor a purchase order (each, a "**Purchase Order**") specifying the applicable quantities, Fees, and delivery specifications with respect to the Project Deliverables. A Purchase Order may be delivered to Vendor through Ariba (or any successor purchasing system employed by XYZs) or otherwise as XYZs may elect from time to time. Each Purchase Order shall be identified by a unique "**Purchase Order Number**".
- (f) Invoices. Following the receipt by Vendor of a Purchase Order, Vendor may return one or more invoice(s), as the case may be, for the Project Deliverables specified therein to XYZs. Invoices shall be detailed and include all invoicing information reasonably required and requested by XYZs, as well as the Purchase Order Number. XYZs shall dispatch payment of an invoice to Vendor within thirty (30) days after the date of receipt of that invoice, provided that the invoice is correct in all material respects (in particular that Fees have only been charged for Project Deliverables that have effectively been provided) and not in dispute. Vendor shall be entitled to charge interest on all sums overdue from

XYZs at a monthly rate of 0.5% in case the payment is delayed beyond the payment due date. Invoices and payments shall be denominated in U.S. Dollars. All invoices shall be submitted via email to: Ariba.Invoices@XYZsinsurance.com.

- (g) Disputed Charges. Notwithstanding the foregoing, and subject to the provisions of Section 1 (d), XYZs may dispute the correctness of an invoice within six (6) months from the date of receipt of the relevant invoice and may withhold payment of any Fees on an invoice that it disputes in good faith while the Parties work to resolve any such dispute. The Parties shall negotiate in good faith to resolve any such dispute within thirty (30) days after Vendor's receipt of notice of any such dispute. XYZs shall not withhold payment on any undisputed Fees set forth on an invoice containing disputed Fees. For avoidance of any doubts, if an audit reveals that in any invoice an excess amount was charged to XYZs, Vendor shall deduct such excess amount from its next invoice or refund such excess amount within thirty (30) days from the date XYZs notifies Vendor of the excess amount, whichever will return such excess amount to XYZs soonest.
- (h) Taxes. Unless otherwise agreed, invoices shall include and list all applicable taxes proposed to be charged to XYZs as separate items. XYZs will remit to Vendor all such separately listed and applicable sales, use and excise taxes lawfully mandated on amounts payable by XYZs to Vendor pursuant to this Agreement. XYZs shall not be responsible for (i) any taxes not so separately listed, which shall be the sole responsibility of Vendor, (ii) the remittance of taxes to applicable tax authorities; or (iii) ad valorem, franchise, privilege, value-added or occupational taxes or any taxes or other governmental payments based on the income, employees, payroll, property or capital of Vendor. Vendor shall cooperate with XYZs' efforts to identify taxable and nontaxable portions of amounts payable pursuant to this Agreement and to obtain refunds of taxes paid, where appropriate. XYZs may furnish Vendor with certificates or other evidence supporting applicable exemptions from sales, use or excise taxation. If XYZs pays or remits a payment to **Vendor** under this provision, Vendor hereby assigns and transfers to **Fanners** all of its right, title and interest in and to any refund for taxes paid. Any claim for refund of taxes against the assessing authority may be made in the name of Vendor or XYZs, or both, at XYZs' option. XYZs may initiate and manage litigation brought in the name of XYZs or Vendor, or both, to obtain amounts paid under this provision. Vendor shall cooperate fully with XYZs, at XYZs' expense, in pursuing any refund claims, including any related litigation or administrative procedure. In regards to the invoicing of use tax for XYZs purchases delivered to XYZs locations in the State of California, Vendor agrees to comply with the use tax exemption in Article 13, Section 28 of the California Constitution and the California Revenue and Taxation Code, Section 6241, that provides an exemption of use tax on the storage, use or other consumption by insurance companies (which includes XYZs) of tangible personal property used in the course of their insurance operations.

5. AUDIT

- (a) Records. Vendor agrees to maintain and preserve its books and records in accordance with generally accepted accounting procedures for a period of three (3) years or for a longer period if required by applicable law, regulation, or order of a regulatory authority. During the Term and for a period of two (2) years thereafter, XYZs shall have the right to have its internal auditors or third party auditors retained by XYZs, who shall not be a competitor of Vendor, inspect and audit such portions of Vendor's books and records as is necessary or appropriate for purposes of verifying the amounts paid or payable to Vendor, and to otherwise verify Vendor's compliance with the terms and conditions of this Agreement. Vendor shall make its premises and such books and records available for inspection by XYZs, by XYZs' designee upon ten (10) days prior notice. For avoidance of any doubt, XYZs shall not be required to notify Vendor in advance with respect to any audit required by any insurance or other regulatory authority.
- (b) Cooperation. Vendor and its Representatives shall co-operate with all competent regulatory authorities and shall allow regulators access to Vendor's premises and all relevant records, and such other access to the premises and relevant records where required by legal processes or applicable laws, regulations, or orders of a regulatory authority.
- (c) Inspection. XYZs shall have the right to monitor Vendor's compliance with the terms of Section 6, below, during normal business hours, and with reasonable prior notice which shall not be less than ten (10) days. XYZs or its authorized Representatives may inspect Vendor's facilities and equipment, and any information or materials in Vendor's possession, custody or control, relating in any way to Vendor's

obligations under Section 6. Any such inspection shall not unreasonably interfere with the normal conduct of Vendor's business. Vendor shall cooperate fully with any such inspection initiated by XYZs.

- (d) XYZs acknowledge that any audits performed pursuant to the exercise of rights under this Section 5 shall not entitle XYZs or the auditors and inspectors to inspect any data, information or records to the extent that such materials relate to any other Client or sub-contractor of Vendor, other than those sub-contractors performing any services that are or may become included in the Services. Inspection and/or audit of Vendor's contracts with its employees, costs of performing the Services, profit margins or other internal financial data of Vendor or any Vendor sub-contractor shall be out of scope. XYZs agrees that its auditors and inspectors shall comply with Vendor's security, safety and other site specific regulations and procedures while on Vendor's premises and the auditors and inspectors shall be escorted at all times by Vendor personnel.

6. CONFIDENTIAL INFORMATION AND RETENTION OF DOCUMENTS

- (a) XYZs Confidential Information. The term "**XYZs Confidential Information**" means all non- public information relating to XYZs or another XYZs supplier which is in oral, written, electronic or any other form disclosed by XYZs to Vendor or which Vendor otherwise learns or becomes aware of during the creation and delivery of the Project Deliverables. XYZs Confidential Information shall include, but not be limited to, information about technological or organizational systems, customers, personnel, business activities, databases, Intellectual Property Rights, the terms and conditions of this Agreement and other information in relation to it, whether or not it is specifically marked confidential. Further, Vendor shall maintain applicable secrecy obligations resulting from insurance and financial services laws and regulations which are in effect from time to time. Notwithstanding the foregoing, XYZs Confidential information shall not include any information, which (1) was in Vendor's lawful possession without a confidentiality obligation prior to the disclosure and was not obtained by Vendor either directly or indirectly from XYZs, (2) is or becomes publicly available through authorized disclosure by XYZs, (3) is rightfully obtained by Vendor from a third party, who has the right to transfer or disclose it on a non-confidential basis, or (4) is independently developed by Vendor without any reference to XYZs Confidential Information of XYZs, as evidenced by the records of Vendor. In addition to the foregoing, Vendor agrees to the specific confidentiality and non-disclosure-related obligations as provided on Attachment I to this Agreement regarding Personal Information (as defined in Attachment I).
- (b) Permitted Disclosure. Vendor agrees to maintain the XYZs Confidential Information in strict confidence and to use it only for the purpose and to the extent necessary for the performance of any of its obligations under this Agreement. Notwithstanding the foregoing, Vendor may do any or all of the following:
 - (1) make available XYZs Confidential Information to those Representatives of Vendor who need to know such information for purposes of the implementation of this Agreement;
 - (2) make available XYZs Confidential Information to a third party for the purpose and to the extent necessary for the performance of its obligations under this Agreement, to the extent necessary to permit a third party to perform legal, accounting, or audit services for Vendor, and to the extent necessary to permit a third party to assist Vendor in assessing its business operations, provided that each such third party is subject to confidentiality obligations at least as stringent as those applicable to Vendor hereunder;
 - (3) make disclosures as required (A) where requested under proper authority or required by any court of competent jurisdiction or any competent judicial, governmental, supervisory or regulatory body, or (B) where required by legal processes or applicable laws or regulation, provided that reasonable measures are taken to limit such disclosures and to obtain confidential treatment or a protective order and Vendor notifies XYZs reasonably in advance and allows XYZs to participate in such efforts;
 - (4) disclose XYZs Confidential Information with the express prior written consent of XYZs.
- (c) Return and Destruction. Upon written request of XYZs or in the event of termination or expiration of this Agreement, Vendor shall if requested to do so by XYZs, either promptly destroy and certify to

have done so or return all written, electronically or otherwise stored XYZs Confidential Information and destroy all documents, memoranda, notes and other writings whatsoever prepared by Vendor or its Representatives based on or reflecting XYZs Confidential Information and certify to have done so.

- (d) Effect. Sections 6(a), (b), and (c) shall remain in full force and effect after termination of the Agreement, and shall apply in the same way to Representatives of Vendor and Vendor shall require by agreements that its Representatives are subject to confidentiality and non-disclosure obligations at least as stringent as those applicable to Vendor hereunder.
- (e) Vendor Confidential Information. The term "**Vendor Confidential Information**" means all non-public information relating to Vendor which is in oral, written, electronic or any other form disclosed by Vendor to XYZs or which XYZs otherwise learns or becomes aware of during the Term. Vendor Confidential Information shall include, but not be limited to, information about technological or organizational systems, customers, personnel, business activities, databases, Intellectual Property Rights, the terms and conditions of this Agreement and other information in relation to it, whether or not it is specifically marked confidential. Notwithstanding the foregoing, Vendor Confidential Information shall not include any information, which (1) was in XYZs' lawful possession without a confidentiality obligation prior to the disclosure and was not obtained by XYZs either directly or indirectly from Vendor, (2) is or becomes publicly available through authorized disclosure by Vendor, (3) is rightfully obtained by XYZs from a third party, who has the right to transfer or disclose it on a non-confidential basis, or (4) is independently developed by XYZs without any reference to Vendor Confidential Information of Vendor, as evidenced by the records of XYZs.
- (t) Permitted Disclosure. XYZs agrees to maintain the Vendor Confidential Information in strict confidence and to use it only for the **purpose** and to the extent necessary for the performance of any of its obligations **under this Agreement. Notwithstanding the foregoing, Fanners may do any** or all of the following:
 - (1) make available Vendor Confidential Information to those Representatives of XYZs who need to know such information for purposes of the implementation of this Agreement;
 - (2) make available Vendor Confidential Information to a third party for the purpose and to the extent necessary for the performance of its obligations under this Agreement, to the extent necessary to permit a third party to perform legal, accounting, or audit services for XYZs, and to the extent necessary to permit a third party to assist XYZs in assessing its business operations, provided that each such third party is subject to confidentiality obligations at least as stringent as those applicable to XYZs hereunder;
 - (3) make disclosures as required (A) where requested under proper authority or required by any court of competent jurisdiction or any competent judicial, governmental, supervisory or regulatory body, or (B) where required by legal processes or applicable laws or regulation, provided that reasonable measures are taken to limit such disclosures and to obtain confidential treatment or a protective order and XYZs notifies Vendor reasonably in advance and allows Vendor to participate in such efforts;
 - (4) disclose Vendor Confidential Information with the express prior written consent of Vendor.
- (g) Return and Destruction. Upon written request of Vendor or in the event of termination or expiration of this Agreement, XYZs shall if requested to do so by Vendor, either promptly destroy and certify to have done so or return all written, electronically or otherwise stored Vendor Confidential Information and destroy all documents, memoranda, notes and other writings whatsoever prepared by XYZs or its Representatives based on or reflecting Vendor Confidential Information and certify to have done so.
- (h) Effect. Sections 6(e), (t), and (g) shall remain in full force and effect after termination of the Agreement, and shall apply in the same way to Representatives of XYZs and XYZs shall require by agreements that its Representatives are subject to confidentiality and non-disclosure obligations at least as stringent as those applicable to XYZs hereunder.
- (i) Immunity. Each Party is hereby given notice of the immunity set forth in 18 USC§ 1833(b).

7. INTELLECTUAL PROPERTY

- (a) Ownership. The Parties retain ownership of their respective Pre-Existing Material (as hereinafter defined). Neither Party grants the other Party any rights to use its Pre-Existing Material without having given its prior written consent, except as otherwise expressly and unambiguously stated in this Agreement or in a WO.
- (b) Project Deliverables. Except to the extent that any of Vendor's Pre-Existing Materials are embedded in the Project Deliverables, XYZs shall own the Project Deliverable(s) and other works developed, created, or provided by Vendor hereunder, together with all related documentation, and all of the Intellectual Property Rights therein. Vendor hereby assigns to XYZs for no additional consideration, all of Vendor's rights, including copyrights, patents, trade secrets and other intellectual property, in all Project Deliverables and other works prepared by Vendor under this Agreement, and which are specified in a WO. Vendor shall, and shall cause its employees and agents to, promptly sign and deliver any documents and take any actions that XYZs reasonably requests to establish and perfect the Intellectual Property Rights assigned to XYZs under this provision. Vendor hereby grants to XYZs a royalty- free, fully paid-up, worldwide, non-exclusive, perpetual, irrevocable right to use Vendor's Pre-Existing Materials that are incorporated or included in the Project Deliverables, solely to the extent necessary or appropriate to permit the full enjoyment of the Project Deliverables by XYZs. Vendor shall neither receive nor retain any rights in the Project Deliverables (other than with respect to Vendor's Pre-Existing Materials), except as otherwise specifically agreed upon in the applicable WO. All Project Deliverables (including the results of any tasks) not otherwise expressly noted will be the property of XYZs.
- (c) License. To the extent applicable law does not permit the receipt by XYZs of ownership or other rights as described in Section 7(b), above, Vendor hereby grants to XYZs with respect to the Project Deliverables, at no additional cost, a perpetual, unlimited, exclusive, transferable, sub-licensable, worldwide, irrevocable, royalty-free, fully paid-up license, to use, copy, exploit, modify and prepare derivative works (including, without limitation, the right to make, have made, use, import, exploit, offer for sale and sell or otherwise provide or dispose of products and services using or incorporating the same) or to practice any process in connection therewith, with the right to sublicense such license through multiple levels of sublicenses and to third parties.
- (d) Survival. The license and ownership rights granted to XYZs under this Agreement or any WO shall survive the termination or expiration of this Agreement and/or such WO, regardless of how a termination occurs.

8. ACCEPTANCE OF DELIVERABLES

Unless specifically provided otherwise in an WO, XYZs shall, within a reasonable period of time (which will not exceed thirty (30) days) examine, test, review or otherwise evaluate any Project Deliverables prepared by Vendor pursuant to and delivered to XYZs in accordance with this Agreement and a WO. If any Project Deliverable does not meet the requirements of this Agreement or such WO, XYZs may request that Vendor remedy such default free of charge within a reasonable period of time. After Vendor re-delivers a rejected Project Deliverable with respect to which XYZs has requested remediation, XYZs will, within a reasonable period of time (which will not exceed an additional thirty (30) days) re-examine, re-test, review, or re-evaluate the remedied and re-delivered Project Deliverable. If, after re-delivery of such Project Deliverable, it is still determined in the reasonable judgment of XYZs that it fail to meet the requirements of this Agreement or if a re-delivery is not requested by XYZs, XYZs shall, in its sole discretion, have the right (a) to keep the Project Deliverable and to deduct an appropriate and reasonable amount from the amounts otherwise paid and/or payable hereunder reflecting the reduced value of the Project Deliverable to XYZs, (b) with retrospective effect, to withdraw from this Agreement or a WO entirely or only in respect to the defaulting parts of the Project Deliverable, in which case Vendor undertakes to fully refund to XYZs the Fees, including any down payments, prepayments, or partial payments already paid relating to the reduction in value, (c) to employ a third party to correct the default on the account and expense of Vendor, (d) request Vendor to continue to remedy the default, in which case the remediation and re-delivery procedure set forth above shall be repeated and any other rights mentioned in this clause shall not be affected, and (e) in addition to all of the options set forth in Sections 8(a) to 8(d) above, Vendor shall compensate XYZs in full for any and all reasonable losses incurred as a result of such failure of delivery, including the difference in costs incurred by XYZs in using a different vendor in place of Vendor, but only to the extent that such

losses were not caused by XYZs' willful misconduct or gross negligence. The remedy under Section 8(e) does not limit XYZs' right to claim damages under this Agreement.

9. LIABILITY

- (a) Damages. Each Party shall be fully liable for all damages it causes, whether a claim for damages with respect thereto is made in contract or tort (including negligence), for a breach of statutory duty or otherwise.
- (b) Indirect Damages Excluded. Notwithstanding anything else to the contrary in this Agreement or a WO, neither Party shall be liable for any indirect, incidental, consequential, special or punitive damages caused by it arising out of or relating to its performance under the Agreement, which exclusion shall include but not be limited to any loss of income, profits or savings.
- (c) Direct Damages. Subject to the provisions of Section 9 (a) and (b) above, and Section 9(d), below, each Party's aggregate liability for all direct losses, liabilities and damages arising out of or in connection with this Agreement (whether caused by negligence or otherwise) shall in no event exceed the total amounts paid by XYZs to Vendor during the immediately preceding twelve (12) months.
- (d) Unlimited Damages. The Parties agree that despite any dollar limitation of liability agreed to in this Agreement or any WO, such limitation shall not apply to the following cases, which means that a Party's liability shall be unlimited in case of: (1) death and personal injury; (2) damages caused to personal/tangible property; (3) a Party's fraud, willful misconduct or gross negligence; (4) a Party's obligation to indemnify the other Party for claims of third parties pursuant to Section 10, below; (5) damages arising out of the delivery to XYZs of harmful code as provided for in Section 3(1) above, and (6) cases of non-compliance with the obligations with respect to Technology Security, Confidential Information, Personal Information, or Intellectual Property Rights.
- (e) Force Majeure. Neither Party shall be liable to the other Party for any delay or failure to perform an obligations under this Agreement to the extent the delay or failure is due in whole or in part to any acts of god such as fire, explosion, flood and storm, war, civil disturbance, general strike, general lockout or other general labor dispute, embargo, failure of power or any other similar cause beyond the reasonable control of a Party (herein referred to as "**Force Majeure**"), provided the affected Party provides the other Party with written notice of the Force Majeure event within a reasonable time after its occurrence. Neither Party shall be required to pay any periodic fees or charges hereunder to the extent and for the duration of any such Force Majeure event.
- (f) Separation of XYZs Liability. If Vendor creates and delivers any of the Project Deliverables to any Affiliate of XYZs Group, Inc., XYZs Group, Inc. shall not be or become obligated hereunder for the failure of such Affiliate to meet any of its obligations, including without limitation its obligation to make any payment to Vendor, with respect to such Project Deliverables, and no such Affiliate shall be or become liable to Vendor for any XYZs Group, Inc. obligations hereunder.
- (g) Effect of Laws. Any exclusion or limitation of liability shall only apply if and to the extent such exclusion is permissible under the applicable law.

10. INDEMNIFICATION

- (a) Scope of Indemnification.
 - (1) Vendor hereby defends, indemnifies and holds harmless, and shall defend, indemnify and hold harmless, at its own expense XYZs and its Affiliates, as well as their respective directors, officers, agents, employees, attorneys in fact and shareholders (the "**Indemnified Parties**"), from and against any and all claims, debts, losses, liabilities, demands, obligations, costs, expenses, fines, penalties, actions and causes of action, judgments, judgment for damages, alleged claims or litigation arising out of, resulting from or in connection with (i) any claim, judgment, or determination against the Indemnified Parties, or any of them, that Vendor, its respective employees, or its agents, are deemed employees of XYZs and/or XYZs has misclassified Vendor, its respective employees, or agents as independent contractors when they should have been classified as employees of XYZs (including charges filed with the Equal Employment Opportunity Commission, Department of

Labor, or corresponding state agencies), (ii) a finding of Liability by a state or local government that any Indemnified Party is responsible for unemployment compensation to any Staff Member, (iii) a finding by a tribunal requiring any Indemnified Party to pay workers' compensation benefits to any Staff Member, (iv) any penalties (including assessable payments under Section 4890H(a) of the Patient Protection and Affordable Care Act) that are assessed due to Vendor's failure to offer such coverage to its Staff Members, (v) any claim that any Project Deliverable provided hereunder infringes, violates or misappropriates any Intellectual Property Rights of a third party, (vi) the death of or bodily injury to any person or damage to any property, or (vii) any breach of Vendor's confidentiality obligations hereunder. The indemnification provided to the Indemnified Parties shall include, without limitation, actual attorneys' fees, allocable fees and expenses of in-house counsel, expert witness fees, consultants' costs, court costs, and other allocable fees, as well as other damages herein described.

- (2) XYZs hereby defends, indemnifies and holds harmless, and shall defend, indemnify and hold harmless, at its own expense Vendor and its Affiliates, as well as their respective directors, officers, agents, employees, attorneys in fact and shareholders (the "**Indemnified Parties**"), from and against any and all claims, debts, losses, liabilities, demands, obligations, costs, expenses, fines, penalties, actions and causes of action, judgments, judgment for damages, alleged claims or litigation arising out of, resulting from or in connection with (i) any claim that any material provided hereunder infringes, violates or misappropriates any Intellectual Property Rights of a third party, (ii) the death of or bodily injury to any person or damage to any property, or (iii) any breach of XYZs' confidentiality obligations hereunder. The indemnification provided to the Indemnified Parties shall include, without limitation, actual attorneys' fees, allocable fees and expenses of in-house counsel, expert witness fees, consultants' costs, court costs, and other allocable fees, as well as other damages herein described.

(b) **Intellectual Property Rights Claims.**

- (I) In the case of any Intellectual Property Rights granted or licensed by Vendor to XYZs in connection with a Project Deliverable, XYZs agrees to notify Vendor in writing of any claim made against XYZs for any alleged breach. XYZs further agrees to allow Vendor to control the litigation or settlement of any such claim and to provide reasonable cooperation with Vendor, at Vendor's sole expense, in the investigation, defense, and settlement thereof; provided, however, that Vendor shall not enter into any such settlement, nor make any admission to any claimant, in or with respect to which any liability for such claimed violation is attributed to XYZs, nor which would or might result in any reputational damage to XYZs, without the express written consent of XYZs. Vendor hereby defends, indemnifies and holds XYZs harmless, and shall defend, indemnify and hold XYZs harmless, from and against any liability, loss, cost, and/or obligation, including attorneys' fees and costs (and including the allocable cost of XYZs' in-house counsel), arising out of or related to any and all of such claims. XYZs may participate in the defense of any or all of such claims at XYZs' own expense. If a claim is made or, in Vendor's opinion, is likely to be made, then Vendor, at its option, may: (i) modify the Project Deliverable while retaining the original functionality; (ii) obtain all necessary rights for XYZs to continue using the Project Deliverable; or (iii) in the case of a Project Deliverable that is software, (A) terminate the License for the Project Deliverable and refund a pro-rated portion of the license fees paid by XYZs for the affected Project Deliverable using a five year straight line depreciation and (B) XYZs agrees (I) to install a different version of the Project Deliverable, as provided in Section I O(b)(I)(I) above (and in such case Vendor agrees to pay any and all costs incurred by XYZs in doing so immediately upon the presentation to Vendor of an invoice for such costs) or (II) stop using the Project Deliverable (and in such case Vendor agrees to pay any and all costs incurred by XYZs in obtaining replacement software), if requested by Vendor. This indemnification obligation does not apply to the extent that a claim is based on (iv) XYZs' combination of the subject Project Deliverable with other materials not provided by Vendor, (v) XYZs' modification of the Project Deliverable, (vi) Vendor's compliance with XYZs' reasonable instructions, or (vii) XYZs' failure to comply with Vendor's reasonable instructions, if such claim would not have been made but for such combination, modification, compliance, or failure to comply or, in the case of a Project Deliverable that is software, as of the date the claim arose, XYZs had not installed the latest release or update to the subject Project Deliverable, if such claim would not have been made if the release or update had been installed.

- (2) In the case of any Intellectual Property Rights granted or licensed by XYZs to Vendor in connection with a Project Deliverable, Vendor agrees to notify XYZs in writing of any claim made against Vendor for any alleged breach. Vendor further agrees to allow XYZs to control the litigation or settlement of any such claim and to provide reasonable cooperation with XYZs, at XYZs' sole expense, in the investigation, defense, and settlement thereof; provided, however, that XYZs shall not enter into any such settlement, nor make any admission to any claimant, in or with respect to which any liability for such claimed violation is attributed to Vendor, nor which would or might result in any reputational damage to Vendor, without the express written consent of Vendor. XYZs hereby defends, indemnifies and holds Vendor harmless, and shall defend, indemnify and hold Vendor harmless, from and against any liability, loss, cost, and/or obligation, including attorneys' fees and costs (and including the allocable cost of Vendor's in-house counsel), arising out of or related to any and all of such claims. Vendor may participate in the defense of any or all of such claims at Vendor's own expense. If a claim is made or, in XYZs' opinion, is likely to be made, then XYZs, at its option, may: (i) modify the Intellectual Property Rights; (ii) obtain all necessary rights for Vendor to continue using the Intellectual Property Rights; Vendor agrees (A) to install a different version of the Intellectual Property Rights, as provided by XYZs or (B) stop using the Intellectual Property Rights (and in such case XYZs agrees to pay any and all costs incurred by Vendor in obtaining replacement software), if requested by XYZs. This indemnification obligation does not apply to the extent that a claim is based on (iii) Vendor's combination of the subject Intellectual Property Rights with other materials not provided by XYZs, (iv) Vendor's modification of the Intellectual Property Rights, (v) XYZs' compliance with Vendor's reasonable instructions, or (vi) Vendor's failure to comply with XYZs' reasonable instructions, if such claim would not have been made but for such combination, modification, compliance, or failure to comply or, in the case of an Intellectual Property Right that is software, as of the date the claim arose, Vendor had **not** installed the latest **release** or update to the subject Intellectual Property Rights, if such claim **would not have been made if the release or update had been installed**.
- (c) Notice. If either Party is notified or otherwise becomes aware of any event for which indemnification to the Parties is provided in this Section I 0, such Party shall provide the other Party with written notice of the event as soon as possible, but in no event later than thirty (30) days after the earlier of (1) the time such Party has actual knowledge of the occurrence of such event, or (2) the time such Party receives notice that an action has been filed in court, or action has been taken by any administrative agency, alleging the occurrence of an event that entitles Parties to indemnification by other Party. A Party's failure to provide prompt written notice will not diminish such Party's indemnity obligations, except to the extent such Party is prejudiced by such failure. A Party will be entitled to participate in the action or proceeding, and, after written notice from other Party, to assume the defense of the action or proceeding with mutually acceptable counsel, or, with other Party's consent, compromise or settle the action or proceeding, at such other Party's own expense. Notwithstanding a Party's election to assume the defense of the action or proceeding, the other Party shall have the right to employ separate counsel and to participate in the defense of the action or proceeding at its own expense. A Party shall not settle any claim, action, suit or proceeding or threat thereof without the prior written approval of other Party where the settlement would require payment of funds by other Party or admit or attribute to other Party any fault or misconduct.
- (d) Contributing Fault. The Parties intend that the indemnity obligations set forth above shall apply even if a claim or loss arises in part from the negligence or other wrongful act or omission of a Party. In such event a Party's obligation shall be reduced in proportion to the contributing willful misconduct, negligence or other contributing fault of other Party.

II. COMMENCEMENT, DURATION, TERMINATION, EFFECTS OF TERMINATION

- (a) Term. This Agreement shall commence as of the Effective Date and remain in effect until terminated. The time period between the commencement and the termination is referred to herein as the "**Term**".
- (b) Termination. This Agreement may be terminated upon the occurrence of one of the following events and such termination notice shall not be considered a termination at an improper time:
- (1) XYZs may at any time and at its sole discretion terminate this Agreement without cause; provided, however, that this Agreement may not be terminated without cause so long as any Work Order or similar document governed by this Agreement is still in effect.

- (2) Work Orders entered into pursuant to this Agreement may be terminated without cause as provided in each such WO. Each WO shall provide that no such termination without cause may take place except upon written notice of not less than the shorter of one hundred eighty (180) days or the remaining term of such WO. In addition, each WO so terminated shall provide for the payment by XYZs to Vendor of an amount (the "Early Termination Payment") determined pursuant to the applicable WO that fairly compensates Vendor for unamortized costs specifically incurred under such WO. The costs that may be taken into account for purposes of computing the Early Termination Payment (A) shall be transition or implementation costs that have been agreed to between XYZs and ABC to the extent (i) incurred for purposes of providing the Services described in such WO, or (ii) ABC has a non-cancellable obligation to pay such amount, (8) shall not have been previously reimbursed to Vendor by XYZs, and (C) shall have been described in the WO or in another written document signed by the Parties.
- (3) The Parties may at any time mutually agree in writing to a termination.
- (4) Each Party may terminate the Agreement with immediate effect in the event of the suspension of business by the other Party, the institution of bankruptcy or liquidation proceedings by or against the other Party, the appointment of a trustee or receiver for the other Party's property or business, or in the case of any assignment, reorganization or arrangement by the other Party for the benefit of its creditors. Each party may terminate this Agreement with immediate effect in case of the insolvency of other party. In any of such aforementioned cases, the termination is automatically effective on the date of the occurrence of the respective event without passing any termination notice period. Where an automatic termination is prohibited by law, the other Party may terminate this Agreement with immediate effect by a notice in **writing** to the Party facing the respective event.
- (5) A Party may **request a termination with immediate effect (A) in the event of a material** breach of an obligation under this Agreement by the other Party, or (8) if such breach can be remedied, if the non-breaching Party has notified the other Party of such breach and the breaching Party did not remedy it within ten (10) days. For avoidance of doubts, failure by XYZs or its Affiliates to pay any fees that are due and payable and not subject to an unresolved dispute shall be considered a material breach.
- (c) Post Termination Obligations. Upon termination of this Agreement it ceases to be of any effect, and XYZs shall not be liable to Vendor for any damages in respect thereof nor shall XYZs be liable to make any further payments to Vendor under this Agreement whatsoever except insofar as any payment is due but outstanding at the date of termination. Upon termination Vendor shall take any actions towards termination of its obligations that XYZs shall reasonably request.
- (d) Transition Assistance Services. The term "**Transition Assistance Services**" means the assistance requested by XYZs to allow the Services to continue without interruption or adverse effect after the expiration or termination of this Agreement or any WO created hereunder. Upon the expiration or termination of this Agreement or such WO, if XYZs so requests and has paid to Vendor all due and unpaid Fees that are not subject to an unresolved Dispute, Vendor shall provide Transition Assistance Services to XYZs or its designee commencing on the date of such expiration or termination with respect to all or any part of the applicable Services and continuing for a reasonable period of time to be agreed upon by the Parties, but not less than three (3) months. XYZs agrees to reimburse Vendor for any reasonable additional costs incurred by Vendor in providing the Transition Assistance Services. All Transition Assistance Services will be provided in accordance with and subject to all of the terms and conditions of this Agreement and any applicable WO, as if this Agreement or such WO, as the case may be, had not expired or terminated. The fees for the Transition Assistance Services performed by Vendor shall be calculated using the FTE rates in existence at the time the Termination Assistance Services are provided. The Transition Assistance Services shall be provided when the previous dues are paid by XYZs.

12. INSURANCE

Vendor shall at all times during the Term and until completion of all Projects hereunder, at its sole cost and expense, comply with the following requirements:

(a) Minimum Coverages. The following minimum coverages and limits are required:

- (1) Workers Compensation coverage for Vendor's Employees and personnel in the states where Project Deliverables are to be created with the statutory limits required in each such state. To the fullest extent allowable by law, the policy must include a waiver of subrogation in favor of XYZs and its directors, officers, Affiliates and employees.
- (2) Employer liability coverage with limits of not less than \$1,000,000 per accident, \$1,000,000 per disease, per employee, and \$1,000,000 per disease in the aggregate.
- (3) Commercial general liability insurance on an ISO CG 00 01 latest edition or equivalent form covering claims for bodily injury, death, personal injury or property damage occurring or arising out of the performance of this Agreement, premises, operations, products/completed operations and liability assumed under an insured contract. To the fullest extent allowable by law, the policy must include a waiver of subrogation in favor of XYZs and its directors, officers, Affiliates, and employees. The limits of insurance shall not be less than:

\$1,000,000 per occurrence,
\$2,000,000 General Aggregate,
\$1,000,000 Products-Completed Operations Limit
\$1,000,000 Personal and Advertising Injury Limit
\$100,000 Fire Legal Liability

- (4) If Vendor's creation and delivery of any of the Project Deliverables hereunder involves the use of vehicles, automobile liability insurance covering all owned, non-owned and hired motor vehicles with limits **of not less than \$1,000,000 per accident and in annual aggregate for bodily injury and property damage.**
 - (5) Umbrella/excess liability coverage with liability limits of not less than \$1,000,000 and in annual aggregate, with terms and conditions at least as broad as underlying commercial general liability, auto liability and employer's liability.
 - (6) If Vendor's creation and delivery of any of the Project Deliverables involves professional services or design work, Errors and Omissions/Professional Liability Insurance with coverage for Legal liability with liability limits of not less than \$1,000,000 per claim or wrongful act and \$2,000,000 annual aggregate. If any of the Projects involves the use of XYZs' telecommunications network Vendor shall include separately or as part of the professional liability coverage, internet liability and network protection (cyber risk perils) for claims arising due to vendor's error's, omission or negligence and required limits shall be increased as required to \$2,000,000 per claim or wrongful act and in the aggregate.
- (b) Insurers. Vendor shall maintain all insurance coverages required hereunder with insurers having an A.M. Best rating of at least A and a Financial Size Category of at least VII or better or with a reputed carriers, except in the case of workers compensation insurance, with respect to which Vendor may insure from a state fund in the State where the Project Deliverables are being created. Any coverage that is on a "claims made" basis such coverage shall be maintained for at least two (2) years following the expiration of this Agreement or the completion of the last Project covered under such policy, whichever is later. Any retroactive date shall be prior to the commencement of such Projects.
- (c) No Waiver. The failure of XYZs to review or require evidence of required insurance shall not be construed as a waiver of Vendor's obligation to maintain the insurance. The fulfillment of such obligations, however, shall not otherwise relieve Vendor of any liability assumed hereunder or in any way modify Vendor's obligation to indemnify XYZs.
- (d) Excess Limits. The insurance limits required hereunder may be obtained through any combination of primary and excess or umbrella liability insurance.
- (e) Certificates. Vendor shall deliver certificates evidencing the required insurance before the commencement of any of the Projects. Renewal certificates or binders shall be provided at least twenty (20) days after the expiration of any required insurance.

if any, accepts and assumes all related terms and conditions of the Agreement explicitly in writing to carry out XYZs' obligations hereunder. In the event an express consent to any such Assignment is required by law or otherwise, Vendor herewith expressly declares its consent to such Assignment and shall, where required, undertake any further confirmations and provide further assistance for a formal Assignment.

(b) No Partnership/No Employment:

(1) It is understood and agreed that each of the Parties is an independent party and nothing in this Agreement or any document referred to in it or any arrangement contemplated by it is intended to or shall operate (A) to create an employment relationship between XYZs on the one hand and Vendor or any member of Vendor's Staff on the other hand, and with respect to the members of Vendor's Staff, XYZs is not and shall not become responsible for the payment of wages or salary, for the deduction and payment of any statutory social security contributions, for paying any insurance premiums with respect to accident, illness, or any other coverages, nor for any tax related administration or payments (e.g., income tax withholding obligations), (8) to create a distribution relationship, partnership, joint venture, association or other co-operative entity between the Parties for any purpose whatsoever, (C) to authorize a Party to act as agent for the other Party, or (D) to grant authority to act in the name or on behalf of, or to assume or enter into any obligation on behalf of, or otherwise to bind the other Party in any way (including but not limited to the making of any representation or warranty, the assumption of any obligation or liability and the exercise of any right or power).

(2) Vendor shall have sole and exclusive liability for all wages, benefits, employment related taxes, workers' compensation coverage, and unemployment compensation for its Staff who work on any of the Projects hereunder. Vendor will cooperate and consult with XYZs, answer questions for XYZs, and **provide information as needed by Fanners regarding pending or threatened** litigation matters or administrative charges filed against XYZs by Vendor's Staff. Vendor further agrees to assist XYZs in the defense of these matters by providing the court, tribunal, or agency with truthful information about the nature of the relationship between XYZs and Vendor's Staff, including the intent of the parties that XYZs is not the employer any member of Vendor's Staff and has no responsibility for hiring, termination, compensation, discipline, and performance management decisions regarding any Staff member.

(c) Applicable Law and Jurisdiction: This Agreement shall be governed by and interpreted in accordance with the laws of the State of California, excluding any laws or principles regarding conflict or choice of laws. Each Party irrevocably agrees that any legal action, suit, or proceeding in any way arising out of or in connection with this Agreement shall be submitted to the exclusive jurisdiction of the state or federal courts of California. Each Party waives, to the fullest extent it may effectively do so, any objection which it may now or hereafter have to the laying of venue of any such action, suit, or proceeding and irrevocably waives any right to claim or assert *forum non convenience*, and submits to the jurisdiction of such court in any suit, action or proceeding.

(d) Interpretation: This Agreement has been negotiated by the Parties and their respective counsel and shall be interpreted fairly in accordance with its terms and without any construction in favor or against the other Party.

(e) Attorney's Fees: If any action is brought to enforce any of the provisions of this Agreement, the Party prevailing in such action shall be entitled to recover, in addition to any other award made in such action, its reasonable attorney's fees and costs, as determined by the court in which such award is made.

(f) Non Solicitation: Neither Party shall (except with the prior written consent of the other) during the term and for a period of twelve months thereafter, solicit the services of any staff of the other Party who have been engaged in the provision of the Services or the management of this Agreement or any significant part thereof either as principal, agent, employee, independent contractor or any other form of employment or engagement.

(g) Non-Exclusive Agreement: The Parties hereby agree and acknowledge that this Agreement is of a non-exclusive nature, and both Parties shall be free to enter into similar agreements with other Parties.

Furthermore, XYZs makes no representations whatsoever as to the quantity of Projects to be referred to Vendor under this Agreement.

- (h) Non-Waiver: A waiver by any Party of any of the terms and conditions of this Agreement in any one instance shall not be deemed or construed to be a waiver of such term or condition for the future, or of any subsequent breach thereof, nor shall it be deemed a waiver of performance of any other obligation hereunder.
- (i) Severability: If any provision of this Agreement is found by a court of competent jurisdiction to be void, invalid or unenforceable, the enforceability of the remaining provisions shall be unimpaired.
- (U) Survival of Provisions: In the event of the expiration or termination of this Agreement, any terms of the Agreement that by their nature extend beyond its expiration or termination, including but not limited to the terms and conditions set forth in Sections 3, 5, 6, 7, 9, 10, 13, and 14, and Attachment I and Attachment 2 shall, by their nature, survive such termination and remain in effect until fulfilled.
- (k) Trademarks/Publicity: Vendor hereby covenants and agrees that it will not, without the express, prior written consent of XYZs, (1) use XYZs' or any of XYZs Affiliates' names, trademarks, trade dress, logos or other identification in any manner or for any reason except in regulatory filings, or (2) issue any public statement or press release relating to, or otherwise disclose, any of the terms of or the existence of this Agreement.
- (I) Section Headings: The titles of the sections of this Agreement are for convenience only and shall not in any way affect the interpretation of any provision or condition of this Agreement.
- (m) Entire Agreement: This Agreement and the attached Exhibits and Attachments contain the entire understanding of the Parties hereto relating to the subject matter **hereof** and supersedes all prior and collateral agreements, understandings, statements and negotiations of the Parties. Each Party acknowledges that no representations inducements, promises or agreements, oral or written, with reference to the subject matter hereof have been made other than as expressly set forth herein.
- (n) Amendments: This Agreement may only be amended or modified by an instrument in writing signed by duly authorized Officers of Vendor and XYZs.
- (o) Covenant of Further Assurances: The Parties covenant and agree that, subsequent to the execution and delivery of this Agreement and without any additional consideration, each of the Parties will execute and deliver any further legal instruments and perform any acts which are or may become reasonably necessary to effectuate this Agreement.
- (p) Counterparts: This Agreement and its amendments, addenda, appendices, riders, schedules, Exhibits and attachments may be executed in counterparts, by manual or facsimile signature, each of which will be deemed an original and all of which together will constitute one and the same instrument.
- (q) Successors and Assigns: This Agreement shall be binding upon and inure to the benefit of the Parties and their respective successors and permitted assigns.
- (r) Quality Control Data: Vendor shall regularly conduct in-house quality control measures with respect to the Projects and provide XYZs with reasonable access to the underlying data respecting Vendor's quality control. Vendor shall provide to XYZs certain monthly management reports, the contents and format of which shall be determined by the mutual agreement of the Parties, through electronic media. The Parties agree to work together to develop a data base with respect to such data, and such data shall be owned by XYZs. Vendor shall maintain limited rights to use this data for internal purposes and benchmarking, subject at all times to the confidentiality provisions contained in Section 6 herein and Attachment I hereto.
- (s) Quality Control - OA Review: Vendor, as an independent contractor, shall maintain full responsibility for the creation and delivery of Project Deliverables hereunder. The Project Deliverables shall be subject to inspection by XYZs to ensure that Vendor is in compliance with the terms and intent of this Agreement. XYZs Representatives shall have access to Vendor premises or other locations where

Project work is being performed, at reasonable times, with reasonable notice, for the purpose of observing and inspecting the Project work being performed by Vendor.

- (t) Environmental Responsibility: XYZs expects its vendors to conduct business in a way that demonstrates respect for the environment. Vendors should be alert to environmental issues and share in the commitment to conserve natural resources. Vendors should take steps to minimize the negative impact their business might have on the environment, including without limitation, material selection, air emissions, and the handling and disposal of hazardous material and other waste. Vendors are encouraged to reduce excess packaging and to use recycled and non-toxic materials whenever possible. Vendors shall in all respects comply with all federal, state and local environmental laws and regulations. Vendors are encouraged to develop and maintain an environmental management system based upon the ISO 14000 series standards and establish and implement goals, programs, and procedures in order to conduct operations safely and in an environmentally responsible manner. Vendor shall ensure that its environmental responsibility programs and procedures are periodically evaluated and continuously improved. Vendor shall educate, train, and motivate employees to conduct their activities safely and in an environmentally responsible manner.
- (u) Outsourcing. XYZs has, or may have in the future, one or more agreements with third party business process outsourcing providers (hereinafter, the "**BPO Vendors**") to provide certain information technology, networking, finance, audit, legal, procurement, and other services to XYZs (each, an "**Outsourcing Agreement**"). Such outsourcing may include sourcing, contracting and accounts payable services provided by the BPO Vendors, on XYZs' behalf, relating to the agreements as may be in place from time to time between Vendor and XYZs. However, XYZs will remain the contracting party. Vendor hereby authorizes XYZs to provide any such BPO Vendor access to this Agreement and any work orders, or similar documents governed by this Agreement, as well as to any products, deliverables and services delivered hereunder, provided that (1) such access is only to the extent necessary to enable the BPO Vendor to perform its work for XYZs; (2) the BPO Vendor is bound to XYZs by confidentiality obligations at least as stringent as those applicable to XYZs hereunder, and (3) the BPO Vendors have the right to anonymize and aggregate Confidential Information, which may include Vendor information, and use such anonymized and aggregated information for their own business purposes.

15. DEFINITIONS

For the purposes of this Agreement the following main definitions will apply in addition to the definitions as otherwise set out in this Agreement:

- (a) "**Affiliate**" means any existing or future Person (as hereinafter defined) that directly or indirectly, through one or more intermediaries, in the case of Vendor, controls, is controlled by, or is under common control with Vendor, and in the case of XYZs, is controlled by XYZs, where "control" or "controlled" or "controlling" means and shall be deemed to exist if a Person possesses, directly or indirectly, the power to direct or cause the direction of the management and policies of such other Person, either through contract, or by owning a controlling interest of the voting rights or of the equity capital of such other Person or of other ownership interests, or otherwise possesses or is able to exert a controlling influence over such other Person by virtue of (1) having the ability to elect a majority of the board of directors of such other Person, (2) having the ability to appoint the management of such other Person, (3) having a contract to manage, in significant degree, such other Person (including reciprocal or inter-insurance exchanges and mutual insurer), (4) having the power to direct the day-to-day business or affairs of such Person, (5) being appointed to act as attorney-in-fact for such other Person or (6) control through other comparable means (including conforming to the local definition of control, if any). "**Person(s)**" means an individual, firm, corporation wherever incorporated, trust, joint venture (whether or not having a separate legal existence), partnership, limited liability company, association (whether incorporated or not), or any other entity, or any governmental body or subdivision, agency, or authority thereof, as the case may be.
- (b) "**Project Deliverable(s)**" means any tangible or intangible product(s), deliverables and work results that Vendor delivers to XYZs as part of a Project or the Services rendered hereunder and which have been or are developed independently by or with input of Vendor, and/or procured by Vendor or any of its Representatives, which may include, without being limited to, all commenced, partial or finalized information, reports, specifications, software, drawings, statistics, data, maps, diagrams, plans,

conclusions, recommendations, ideas, discoveries, inventions and any other products, deliverables and work results which result from the Project work hereunder by Vendor or any of its Representatives.

- (c) **"XYZs Property"** means any property and material that XYZs of ABC and entrusts to Vendor and all data and information submitted to Vendor by or on behalf of XYZs, obtained by Vendor in connection with this Agreement, or to which Vendor has access in connection with the Project work hereunder.
- (d) **"Intellectual Property Rights"** means all patents, rights, trademarks, trade secrets, copyrights, domain names, moral rights, rights in databases and all other intellectual property rights of a similar nature or qualified as intellectual property by the applicable law in any part of the world and all applications and rights to apply for the protection of the foregoing.
- (e) **"Pre-Existing Material"** means XYZs', Vendor's or a third-party's ownership rights (including Intellectual Property Rights, if any) in any portions of proprietary data, information, intellectual capital, tools, templates, methodologies or other materials, including any additions, improvements or enhancements of or to the foregoing, developed or acquired prior to signing this Agreement or otherwise developed independent of this Agreement.
- (f) **"Representatives"** means Staff, consultants, directors, employees, agents, advisers and other types of authorized third parties, representatives and advisers of Vendor or XYZs, as applicable.

IN WITNESS WHEREOF, the undersigned have executed this Agreement by and through their respective duly authorized representatives as of the Effective Date.

WNS NORTH

Signature: _____

Name: _____

Title: _____

Date: _____

Vendor TIN: _____

Signature: _____

Name: _____

Title: _____

Date: 5/15/2017

ATTACHMENT 1**PERSONAL INFORMATION PRIVACY, CONFIDENTIALITY AND SECURITY POLICY****I. Definitions**

- (A) **"Company Information"** means any information owned or provided by XYZs, in any form, format or media (including paper, electronic and other records), which Vendor has access to, obtains, uses, maintains or otherwise handles in connection with the performance of Services, including partial copies thereof. Company Information includes Personal Information (including Sensitive Information).
- (8) **"Information Security Incident"** means any unauthorized access or disclosure, unauthorized, unlawful or accidental loss, misuse, destruction, acquisition of, or damage to Company Information, or any other unauthorized Processing of Company Information.
- (C) **"Personal Information"** is any Company Information relating to an identified or identifiable individual.
- (D) **"Process"** or **"Processing"** means any operation or set of operations performed upon Personal Information, whether or not by automatic means, such as creating, collecting, procuring, obtaining, accessing, recording, organizing, storing, adapting, altering, retrieving, consulting, using, disclosing or destroying the data.
- (E) **"Sensitive Information"** means any of the following types of Personal Information: (i) social security number, taxpayer identification number, passport number, driver's license number or other government-issued identification number, or username and password; or (ii) credit or debit card details or financial account number, with or without any code or password that would permit access to the account, credit history, or (iii) information on race, religion, ethnicity, medical or health information, genetic or biometric information or biometric templates.

II. Privacy, Confidentiality and Information Security

- (A) Vendor represents, warrants and covenants as follows:

(1) Authority to Process Personal Data

- (a) Vendor shall Process Personal Information only on behalf of and for the benefit of XYZs, for the purposes of Processing Personal Information, and to carry out its obligations pursuant to this Agreement and XYZs' written instructions. Vendor shall not Process Personal Information for any other purposes, including for its own commercial benefit, unless XYZs has provided its prior express written consent.
- (b) XYZs shall have the exclusive authority to determine the purposes for and means of Processing Personal Information.

(2) Disclosure of and Access to Personal Data

- (a) Vendor and its Personnel shall hold in strict confidence (i) the existence and terms of this Agreement, and any related agreement, and (ii) any and all Personal Information and require Vendor Personnel who will be provided access to or will otherwise Process Personal Information to protect all Personal Information in accordance with the requirements of this Agreement (including during the term of their employment or engagement thereafter).
- (b) Vendor shall limit access to Personal Information to its Personnel who have a need to know the Personal Information as a condition to Vendor's performance of services for or on behalf of XYZs. Vendor shall not share, transfer, disclose or otherwise provide access to any Personal Information to any third party, unless XYZs has authorized Vendor to do so in writing.
- (c) Vendor shall not subcontract any of its rights or obligations concerning Personal Information without the prior written consent of XYZs. Where Vendor, with the consent of XYZs, subcontracts such rights or obligations, Vendor shall enter into a written agreement with each subcontractor that imposes obligations on the subcontractor that are substantially similar to those imposed on Vendor under this Agreement. Vendor shall only retain subcontractors that Vendor reasonably can expect to be suitable and capable of performing the delegated obligations in accordance with this Agreement and XYZs' instructions. Vendor will remain accountable and responsible for all actions by such contractors with respect to their access to and Processing of Personal Information.

- (d) Vendor shall not transfer Personal Information outside the country to which XYZs or its Personnel originally delivered it to Vendor for Processing without written permission from XYZs.
- (e) Vendor shall immediately inform XYZs in writing, and in any case within 2 days of receipt, unless specifically prohibited by laws applicable to Vendor, if Vendor receives any requests with respect to Personal Information received from XYZs' customers, consumers, employees or others, including opt-out requests, requests for access and/or rectification, blocking and all similar requests, as well as any complaints. Vendor shall not respond to such requests unless expressly authorized to do so by XYZs' instructions. Vendor shall cooperate with XYZs with respect to any action taken relating to such requests or complaint.
- (f) If Vendor receives any order, demand, warrant, or any other document requesting or purporting to compel the production of Personal Information (including, for example, by oral questions, interrogatories, requests for information or documents in legal proceedings, subpoenas, civil investigative demands or other similar processes), Vendor will immediately notify XYZs (except to the extent otherwise required by laws applicable to Vendor) and will not disclose Personal Information to the third party without providing XYZs at least forty-eight (48) hours, following such notice, so that XYZs may, at its own expense, exercise such rights as it may have under applicable law to prevent or limit such disclosure. Notwithstanding the foregoing, Vendor will exercise commercially reasonable efforts to prevent and limit any such disclosure and to otherwise preserve the confidentiality of Personal Information and will cooperate with XYZs with respect to any action taken with respect to such request, complaint, order or other document, including to obtain an appropriate protective order or other reliable assurance that confidential treatment will be accorded to Personal Information

(3) Compliance with Privacy and Information Security Requirements

- (a) Vendor **shall comply** with all **laws, regulations, and industry standards containing** rules for the protection of personal information applicable to Vendor and specifically to any related security requirements (collectively **Privacy Laws**).
- (b) No applicable law, or legal requirement, or privacy or information security enforcement action, investigation, litigation or claim prohibits Vendor from (i) fulfilling its obligations under this Agreement or (ii) complying with instructions it receives from XYZs concerning Personal Information. In the event a law, or legal requirement, or privacy or information security enforcement action, investigation, litigation or claim, or any other circumstance, is reasonably likely to adversely affect Vendor's ability to fulfill its obligations under this Agreement, Vendor shall promptly notify XYZs in writing and XYZs may, in its sole discretion and without penalty of any kind to XYZs, suspend the transfer or disclosure of Personal Information to Vendor or access to Personal Information by Vendor, and terminate any further Processing of Personal Information by Vendor, if doing so is necessary to comply with applicable Privacy Laws.
- (c) Vendor shall enter into any further privacy or information security agreement requested by XYZs for purposes of compliance with applicable Privacy Laws. In case of any conflict between this Agreement and any such further data privacy or information security agreement, such further agreement shall prevail with regard to the Processing of Personal Information covered by it.

(4) Information Security Program

- (a) Vendor shall implement, maintain and monitor a comprehensive written information security program that complies with applicable Privacy Laws ("**Information Security Program**"). Vendor's Information Security Program shall include appropriate administrative, technical, physical, organizational and operational safeguards and other security measures designed to (i) ensure the security and confidentiality of Personal Information; (ii) protect against any anticipated threats or hazards to the security and integrity of Personal Information (such as unauthorized access, collection, use, copying, modification, disposal or disclosure, unauthorized, unlawful, or accidental loss, destruction, acquisition, or damage, or any other unauthorized form of Processing); and (iii) protect against any actual or suspected unauthorized Processing, loss, use, disclosure or acquisition of or access to any Personal Information. The safeguards will meet or exceed an applicable third party security assurance standard such as ISO 27001, SSAE 16 SOC 2, ISAE 3402. The Information Security Program will include the

measures listed in the XYZs Technology Security Policy (Attachment 2). Vendor shall provide XYZs with copies of the documented Information Security Program.

- (b) Vendor will maintain and enforce its Information Security Program at each location from which Vendor provides Services. In addition, Vendor will ensure that its Information Security Program covers all networks, systems, servers, computers, notebooks, laptops, tablets, mobile phones, and other devices and media that process, host or store Company Information or provide access to Company Systems. Moreover, Vendor will ensure that its Information Security Program includes industry standard password protections, firewalls and anti-virus and malware protections to protect Company Information from anticipated threats or hazards and protect against unauthorized access to or use of Company Information;
- (c) Vendor will review and, as appropriate, revise its Information Security Program at least annually or whenever there is a material change in Vendor's business practices that may reasonably affect the security, confidentiality or integrity of Company;
- (d) During the course of providing Services, Vendor may not alter or modify its Information Security Program in such a way that will weaken or compromise the confidentiality, availability or integrity of Company Information;
- (e) Vendor will notify Company of its designated primary security manager. The security manager will be responsible for managing and coordinating the performance of Vendor's obligations set forth in its Information Security Program and in this Agreement;
- (f) Vendor shall exercise the necessary and appropriate supervision over its relevant Personnel to maintain appropriate privacy, confidentiality and security of Company Information. Prior to providing access to Company Information to Personnel, Vendor shall require Personnel to comply **with** its Information Security Program, and provide training, as appropriate, regarding the privacy, confidentiality and information security requirements applicable to Company Information.
- (g) Vendor will ensure that all Company Information created by Vendor on behalf of XYZs is accurate and, where appropriate, kept up to date, and ensure that any Company Information which is inaccurate or incomplete is erased or rectified in accordance with XYZs' instructions.

(5) Information Security Incident

- (a) Vendor shall immediately (and in any event within twenty-four (24) hours) inform XYZs in writing, whenever Vendor reasonably believes that there has been an Information Security Incident. Vendor shall inform XYZs with as many details as known at that time (and regularly update XYZs thereafter in writing or by email followed by a written notification) setting out in reasonable detail, without limitation, the nature of the information compromised, threatened, or potentially compromised, the specific information compromised or potentially compromised and of all events which may adversely affect the Vendor's ability to provide the Service. After providing notice, Vendor will investigate the Information Security Incident and take all necessary steps to eliminate or contain the exposure of Company Information and to restore the security of compromised systems, files and information. Vendor shall keep XYZs informed of the status of the Security Incident, all assessments and plans of actions taken by it in response to the Information Security Incident, and all other related matters. XYZs may participate in any Vendor investigation, and shall promptly be provided by Vendor with a full incident report prepared by or for Vendor relating to an Information Security Incident. Vendor further agrees to provide reasonable assistance and cooperation requested by XYZs and/or XYZs designated representatives, in the furtherance of any correction, remediation, or investigation of any Information Security Incident and/or the mitigation of any damage, including any notification that XYZs may determine appropriate to send to affected individuals, regulators or third parties, and/or the provision of any credit reporting service that XYZs deems appropriate to provide to affected individuals. In addition, within 30 days of identifying or being informed of any Information Security Incident arising from any act or omission by Vendor, Vendor will develop and execute a plan, subject to XYZs approval, that reduces the likelihood of a recurrence of an Information Security Incident
- (b) Unless required by law applicable to Vendor, Vendor will not notify any individual or any third party other than law enforcement of any potential Information Security Incident involving Company Information without first consulting with, and obtaining written permission of,

XYZs. XYZs may additionally require Vendor to provide additional notifications which may include, without limitation, the Vendor to distribute to persons whose information was or may have been compromised a direct communication describing Vendor's role in any such Security Incident.

- (c) XYZs has designated the following as the methods for contacting its Information Security team in the event of a Security Incident or Disaster Event (as hereinafter defined) related to the Service: (i) by calling 1-847-706-2439 and (ii) by e-mailing XYZs at usz.zurich.gis.cyber.response@zurichna.com. In accordance with agreed escalation procedures Vendor shall notify the XYZs' contact of such event and render such cooperation as is necessary or appropriate to remedy the impact of such event as soon as is reasonably practicable.

(5) Return or Disposal

- (a) Vendor will, as appropriate and as directed by XYZs, regularly dispose of Company Information that is maintained by Vendor, but that is no longer necessary to provide Services. Promptly upon the expiration or earlier termination of this Agreement for any reason, or such earlier time as XYZs requests, Vendor will immediately cease handling Company information and shall return in a manner and format reasonably requested by XYZs to XYZs or its designee, or, if specifically directed by XYZs, will securely destroy, any or all Company Information in Vendor's possession, custody or control. If Vendor disposes of any paper, electronic or other record containing Company Information, Vendor will do so by taking all reasonable steps (based on the sensitivity of Company Information) to destroy Company Information by: (a) shredding; (b) permanently erasing and deleting; (c) degaussing; or (d) otherwise modifying Company Information in such records to make it unreadable, unreconstructable and indecipherable. Promptly following any return or alternate action taken to comply with this paragraph, Vendor shall provide to XYZs a completed Officer's Certificate certifying that such return or alternate action occurred. In the event applicable law does not permit Vendor to comply with the delivery or destruction of the Personal Information, Vendor warrants that it shall ensure the confidentiality of the Personal Information and that it shall not use or disclose any Personal Information after termination of this Agreement.

(B) Audit and assistance

- (1) Vendor will provide to XYZs, its authorized representatives, and such independent inspection body as XYZs may appoint, on reasonable notice which shall not be less than 10 days: (i) access to Vendor's information, processing premises, and records; (ii) reasonable assistance and cooperation of Vendor's relevant staff; and (iii) reasonable facilities at Vendor's premises for the purpose of auditing Vendor's compliance with its obligations under this.
- (2) Upon notice to Vendor, Vendor will assist and support XYZs in the event of an investigation by any regulator, including a data protection regulator, or similar authority, if and to the extent that such investigation relates to Personal Information handled by Vendor on behalf of XYZs in accordance with this agreement. Such assistance will be at XYZs' sole expense, except where investigation was required due to Vendor's acts or omissions, in which case such assistance will be at Vendor's sole expense.

(C) Injunctive Relief

Vendor agrees that any Processing of Personal Information in violation of this Agreement, XYZs' instructions or any applicable Privacy Laws, may cause immediate and irreparable harm to XYZs for which money damages may not constitute an adequate remedy. Therefore, Vendor agrees that XYZs may obtain specific performance and injunctive or other equitable relief for any such violation or incident, in addition to its remedies at law, without proof of actual damages. Vendor agrees to waive any requirement for the securing or posting of any bond in connection with such remedy.

(D) Indemnification

Vendor agrees to indemnify, keep indemnified, hold harmless, and, upon XYZs' request, defend XYZs and its directors, officers, employees, shareholders, and agents from and against any and all damages, liabilities, expenses, claims, fines, and losses of any type, including without limit reasonable attorneys' fees, in connection with, arising out of, or relating to, in whole or in part, Vendor's failure (or the failure of any employee, contractor, or agent of Vendor) to comply with the obligations concerning information security or protection of Personal Information under this Agreement.

ATTACHMENT2 XYZS TECHNOLOGY SECURITY POLICY

1. **Service Locations**

Vendor shall use its best, reasonable efforts to provide all software (e.g., operating system, monitoring) reasonably necessary in order for it to provide the Service. Vendor shall manage the Service in its facility located at _____ or at the Vendor's contracted hosting facility located at _____ and managed by _____ (collectively, "Data Centers").

2. **Segregation of Duties:**

- (a) Vendor will ensure that access control arrangements are supported by documented standards and procedures which take into account the need to achieve individual accountability, apply additional control to users with special access privileges, and provide segregation of duties.
- (b) Vendor will provide adequate oversight and supervision of individuals involved in administering critical business to minimize the risk of theft, fraud, error, and/or unauthorized changes to information (e.g., by supervision of activities, prohibition of lone working, and segregation of duties).
- (c) Vendor will ensure that access controls for applications will be configured so that its documented standards and procedures are maintained, ensuring transactions and changes to data records are controlled, authorized, and approved.

3. **System Authentication Procedures:**

Vendor shall ensure **that its policies, procedures and systems provide robust authentication** protocols; including, at a minimum, the following:

- (a) User authentication procedures and systems use automated means to enforce the following: (i) authentication by a PIN, password, or token (e.g., smartcard, one-time-use password); (ii) passwords are not displayed on screen or on printed materials; (iii) unique, temporary passwords are issued for new or reset accounts that require change on first use; (iv) passwords are: minimum length of 8 characters, different from the associated UserIDs, composed of a mix of at least three of the following complexity requirements: upper case characters, lower case characters, numeric and special characters (or maximum complexity options supported by the underlying system), changed at least every ninety (90) days and restricted so the same password cannot be used again within eight (8) password changes; (v) accounts must be locked after five (5) incorrect login attempts; (vi) account lockout duration must be set to thirty (30) minutes or longer or until an administrator re-enables the user ID; and (vii) identification of the requestor of password resets through a specialized question set or independent confirmation.
- (b) Users' access rights, including user profiles must be: (i) restricted according to least privilege and need to know principles; (ii) restricted according to users' individual roles and segregation of duties requirements; (iii) enforced by automated access control mechanisms to ensure individual accountability; and (iv) authorized by someone other than the requestor.
- (c) System sign-on mechanisms will be configured to: (i) automatically require sign-on after an interruption of the sign-on process; (ii) use standard methods to protect passwords in transit and at rest including encryption where available; and (iii) display no identifying details or allow an unauthorized individual to deduce a valid username until after sign-on is completed successfully.
- (d) Service or machine accounts that are used by servers or applications must be (i) configured with a password of at least fifteen (15) characters with strong complexity rules (i.e., at least three (3) of the following: upper case, lower case, numeric and symbols) or the maximum complexity supported by the system; and (ii) run with least privilege.

4. **System Integrity:**

Vendor shall provide the following as part of the Services:

- (a) **System Administration:** Vendor shall maintain, manage and support all applications, databases, operating systems, security and network administration required for the Service to operate in accordance with the Agreement, with minimum privileges commensurate with the role respecting

segregation of duties. Vendor shall perform system analysis and tuning to verify that system components are operating efficiently. Vendor is responsible for any infrastructure costs necessary to provide the services to conform to the service level agreements provided as part of the Agreement.

- (b) Security Vulnerability Assessment of Service: Vendor shall perform at its sole expense and on a regular basis, no less than quarterly, a Security Vulnerability Assessment ("SVA") of the Service. An SYA shall include tests to define, identify, and classify security vulnerabilities in the Service. All components of the Service shall be in scope for an SYA, including applications, databases, operating systems, security and network components. Any vulnerability detected by Vendor in the Service shall be resolved promptly and to the reasonable satisfaction of XYZs. Vendor will provide to XYZs copies of sections of assessment reports relevant and pertaining to XYZs' hosted system (i.e., if a potential security vulnerability exists to Vendor's data center) and evidence that any security gaps discovered by the SYA have been remediated.

5. Information Security:

- (a) Remote Access: Vendor shall obtain the prior written approval of XYZs for any remote access contemplated as part of the Services or any software or data to be introduced by Vendor into the system of XYZs or any Affiliate of XYZs, Vendor agrees to take all necessary steps to ensure the integrity, security and confidentiality of all remote access connections with XYZs.
- (b) Risk Assessment: In connection with maintaining its Information Security Program, Vendor will:
- (i) conduct periodic risk assessments to identify and assess reasonably foreseeable internal and external risks to the security, confidentiality and integrity of Company Information; and (ii) evaluate and improve, where necessary, the effectiveness of its information security controls. Such assessments will also consider Vendor's compliance with its Information Security Program and the laws applicable to Vendor [Note: **Required** by Massachusetts and other countries.];
- (c) Access Controls: **Vendor** and any **allowed subcontractors shall**:
- (1) Limit physical and logical access to Vendor's Data Center, labs, supporting environments, and the Services components to: (i) Vendor's essential employees on a need-to-know basis, (ii) to third party contractors who have signed an appropriate confidentiality agreement on a need-to-access basis, and (iii) XYZs' employees and contractors authorized by XYZs to access its hosted system, commensurate with the role respecting segregation of duties;
 - (2) Vendor will maintain appropriate access controls including, but not limited to, limiting access to Company Information to the minimum number of Personnel who require such access in order to provide Services to XYZs.
- (d) Other: Vendor shall:
- (1) Implement and maintain firewall technology and intrusion detection/prevention software configured to minimize or eliminate hacking and other threats;
 - (2) Implement, update and maintain protection against viruses, disabling devices and other malicious code on systems which are part of the Service or are used to support the Service;
 - (3) All communication between the components of the Services will be encrypted using HTTPS (minimum SHA-256 or a replacement encryption standard agreed upon by the Parties); and
 - (4) Encrypt, using industry standard encryption tools, all Sensitive Information that Vendor (i) transmits or sends wirelessly or across public networks; (ii) stores on laptops or storage media, and (iii) stores on portable devices, where technically feasible. Vendor will safeguard the security and confidentiality of all encryption keys associated with encrypted Sensitive Information.
 - (5) Ensure all data is encrypted while at rest in databases or other storage mechanisms, including backup media.
 - (6) XYZs shall retain sole control over the management of and the issuance of public/private encryption key pairs to Vendor that will be used in conjunction with the Service.
 - (7) Vendor will periodically re-certify the systems and users that have access to the Services components.

6. Application Development:

If Vendor is providing Application Development as part of the Services, they shall ensure:

- (a) All web applications (internal and external, and including web administrative access to the application) are developed based on secure coding guidelines such as Open Web Application Security Project Guide (OWASP). The following vulnerabilities are addressed in the software development processes: (i) cross-site scripting (XSS); (ii) injection flaws, particularly SQL injection; (iii) malicious file extension; (iv) insecure direct object references; (v) cross-site request forgery; (vi) information leakage and improper error handling; (vii) broken authentication and session management; (viii) insecure cryptographic storage; (xi) insecure communications; and (xii) failure to restrict URL access.
- (b) All appropriate application security testing is completed before any publicly available systems are made available to the general public. These tests will include validation of data integrity controls that prevent unauthorized modification to data on publicly available systems.
- (c) Web servers that support Internet facing and other applications are: (i) segregated from internal networks and un-trusted networks (e.g., in a 'Demilitarized Zone' (DMZ)); (ii) run on one or more dedicated computers (i.e., they do not provide other services such as file and print, database or e-mail or other business applications); (iii) run with 'least privilege', (iv) prevented from initiating network connections to the Internet; (v) configured so that scripts can only be run from approved locations; (vi) reviewed to ensure that all unnecessary software, network services and applications have been disabled/removed; and (vii) configured to log security-related events generated by the system.
- (d) Sandbox Environments: Vendor will perform any system development activities in specialized development environments which are isolated from the production environment.

7. Disaster Recovery:

- (a) Disaster Event and Warranty: Vendor has implemented Standard Redundancies and Mitigation measures to avoid business disruptions. In case XYZs has any specific recovery needs, upon XYZs' request, Vendor will develop, maintain and implement disaster recovery plans and such DR being specific to XYZs, may involve one-time costs for implementation, recurring costs for maintenance and activation costs during an actual disaster or while testing such customized plans and will be charged to XYZs. Upon agreement on implementation and the associated commercials, the customized disaster recovery plan in particular will address the following issues: (i) safety of personnel and third parties present at the Vendor location(s); (ii) losses of communications capability (e.g., voice, fax, data); (iii) loss of computer processing capabilities; (iv) loss of access of physical office facilities; (v) XYZs or any regulatory bodies shall at any time be entitled to reasonably ask for further information or site visits in order to verify that such measures suffice the purpose; and (vi) Vendor will take appropriate steps to adjust its Disaster Recovery Plans and associated disaster recovery documentation, testing scenarios and procedures, and associated resources as necessary to ensure that it can provide the Services as described in the Agreement and any associated transactional document (the "Disaster Recovery Plan(s)").
- (b) RTO and RPO: Subject to agreement on the customized Disaster Recovery Plan, Recovery from Disaster Events involving the Service shall meet or exceed XYZs' Recovery Time Objectives (RTOs) and Recovery Point Objectives (RPOs) for critical applications and production systems under Vendor's scope. XYZs' RTO for critical applications and production systems is seventy two (72) hours from the declaration of a Disaster Event. XYZs' RPO for associated data recovery for critical applications and production systems is twenty four (24) hours from the declaration of a Disaster Event. Recovery from Disaster Events for XYZs shall not be impacted or in any way limited by Vendor's obligations to other Vendor clients or other Vendor business obligations and Vendor at no time will fail to meet XYZs' RTOs and RPOs for critical applications and production systems as per the agreed customized Disaster Recovery Plan, if any.
- (c) Disaster Recovery Testing: Subject to agreement on the customized Disaster Recovery Plan, Vendor shall (i) establish joint test objectives with XYZs designed to verify that, following a Disaster Event, the Service will be available within the required timeframes; (ii) test all components of the Disaster Recovery Plans at least annually in cooperation with XYZs, its designees, any testing and recovery providers, and any other third party vendors providing services to XYZs; (iii) schedule testing dates with XYZs' approval and give XYZs and its representatives the opportunity to observe and participate in the tests; (iv) coordinate with third party vendors utilized by XYZs

during testing in accordance with the Disaster Recovery Plans; (v) continue to provide the Service, without any impact to the Service or XYZs, during periodic disaster recovery tests; (vi) provide XYZs with an initial written executive test report summary within forty eight (48) hours of the completion of the test; (vii) provide XYZs, in a read-only format specified by XYZs, with a formal report of the test results within thirty (30) days of each test; (viii) provide copies of Disaster Recovery Plan test data to XYZs upon request; (ix) if any component(s) of a Disaster Recovery Plan test fails to achieve its objectives due to the failure or fault of Vendor; Vendor shall, at Vendor's sole cost, retest such component(s) within ninety (90) days; (x) update the Disaster Recovery Plans as necessary upon re-testing and verify to XYZs in writing within five (5) days after the re-test that the remedy was successful. Should such re-test not achieve the Disaster Recovery Plan objectives, Vendor will continue to re-test at Vendor's expense until objectives are achieved.

- (d) In the event of a Disaster Event: Subject to agreement on the customized Disaster Recovery Plan, Vendor shall (i) report Disaster Events to XYZs immediately upon identification, based on parameters defined in the Disaster Recovery Plans, and consult with XYZs for an official declaration of a Disaster as appropriate; (ii) for all Vendor Data Centers, declare Disasters in accordance with procedures existing at the time of declaration; (iii) execute the Disaster Recovery Plans; (iv) determine what resources to deploy and conduct, supervise, and administer the operation and implementation of such resources in accordance with the Disaster Recovery Plans; (v) provide resources as necessary to maintain provision of the Service for unaffected areas and re-align technical resources to maintain business continuity; (vi) coordinate with third party vendors utilized by XYZs in accordance with the Disaster Recovery Plans; (vii) following any Disaster Event, conduct a post-Disaster Event meeting with XYZs in order to understand the cause of the Disaster(s) Event, restore Service and revised service levels (as appropriate) in accordance with the customized Disaster Recovery Plan, **and** develop plans to eliminate or mitigate future occurrences;

**ATTACHMENT 3 XYZS
TRAVEL POLICY**

1. Mileage reimbursement shall be at the then-applicable Internal Revenue Service per-mile rate.
2. Meal allowances:
 - (a) The maximum daily meal allowance reimbursement is specific to the meal claimed and currently is \$53.00 per day, allocated as follows:

Breakfast\$ 11.00
Lunch \$ 15.00
Dinner\$ 27.00
Total \$ 53.00
 - (b) Notwithstanding the foregoing, for the cities of Austin, TX; Fort Lauderdale, FL; Los Angeles, CA and surrounding areas; Manhattan, NY; San Diego, CA; San Francisco, CA; Seattle, WA; and Washington, D.C. only, the maximum daily meal allowance reimbursement is specific to the meal claimed and currently is \$66.00 per day, allocated as follows:

Breakfast \$14
Lunch \$19
Dinner \$33
TOTAL \$66
 - (c) Breakfast and lunch per diem may only be claimed on overnight trips. Meal expenses **are** not allowed when they are **included** in the total cost **or when the Company provides the meals.**
 - (d) **NOTE:** Breakfast per diem may only be claimed if the hotel does not provide breakfast in the base hotel rate, as this is considered an included meal.
 - (e) exceptions:
 - 1) Breakfast provided is "continental" (i.e. a full, hot breakfast is not offered)
 - 2) Dietary restrictions
 - 3) You must leave the hotel before breakfast service is available
1. Economy class air fare or cheaper will be used if available.
2. Only XYZs approved Hotel/Motel accommodations will be used.
3. There shall be no reimbursement for entertainment expenses of any kind.
4. Laundry expenses shall be reimbursed in an amount not to exceed \$2.00 per day if a trip extends beyond seven (7) days.
5. Expenses for personal phone calls shall not be reimbursable.
6. Expenses related to the use of a personal vehicle shall be reimbursed at the then-applicable Internal Revenue Service per-mile rate.
7. Rental car expenses shall be reimbursed at the mid-size rental rate.
8. Tips shall be reimbursed at a fair and reasonable rate
9. Taxi/airport shuttle expenses shall be reimbursed at a fair and reasonable rate

ATTACHMENT4
XYZS INSURANCE WORKPLACE POLICIES FOR VENDOR'S PERSONNEL

Vendor Shall Notify Its Personnel Of, And Shall Enforce, The Following XYZs Workplace Policies.

1. Alcohol and Drug-free Workplace

- (a) XYZs is committed to providing an alcohol and drug-free work environment and expects all Vendor's Personnel to abide by this commitment.
- (b) Vendor's Personnel may not possess or consume alcoholic beverages in the workplace or during work time and are prohibited from the selling, purchasing, transferring, possessing or being under the influence of alcohol on XYZs premises or while performing work for XYZs.
- (c) Vendor's Personnel may not be involved with the use, possession, sale, manufacture, or distribution of unlawful drugs, drug paraphernalia or the unlawful distribution of drugs. Vendor's Personnel are prohibited from using any drug that impairs their ability to perform duties or otherwise adversely affects XYZs business or adversely affects safety.

2. Access Control

- (a) All of Vendor's Personnel must have clearly visible on their persons at all times while on XYZs premises an access card issued by XYZs that contains the name and photograph of such Personnel. The access card will serve as visual identification and as an electronic key to enter XYZs premises and to access approved secured areas as needed. The access card must be returned when Vendor's Personnel no longer has an official purpose on XYZs premises.
- (b) Vendor's Personnel shall not allow anyone access to XYZs facilities without proper identification. It is forbidden to allow anyone to "piggyback" or "tailgate" on a Personnel's entry to XYZs facilities. If a Vendor Personnel observes someone following another person into a Fanners facility without swiping their own access card, such Personnel shall notify building security, that person's manager (if known), or the Personnel's supervisor immediately. If someone attempts to follow a Vendor Personnel into a XYZs facility, such Personnel shall ask such person to swipe their own access card, or ask them to wait at the outer door until building security or the receptionist clears them for entrance.
- (c) Vendor's Personnel shall not prop doors open at any time.
- (d) Vendor's Personnel shall not use another person's access card for entry or loan their access card for any reason. If an access card is lost or misplaced by a Vendor Personnel, such Personnel shall proceed to the building security or reception desk and obtain a temporary visitor's access card. All lost access cards must be reported immediately to building security or a XYZs supervisor so that the lost access card can be deactivated as soon as possible.
- (e) If there is a need to evacuate the office, the access card readers and visitor logs may be used by Emergency Services to identify who is in the office. If a Vendor Personnel has not gained access through a card reader or logged in at the reception desk, there is no way to know that such person is in the building if help is needed.
- (f) Vendor Personnel shall not attempt to gain entry to a XYZs facility by knocking on a door. Entry into the facility is only allowed through the main doors, after presenting the XYZs access card or signing in.

3. Clean Desk and Other Security Standards

Vendors and their Personnel shall observe all of XYZs' business practices in relation to the custodial care of protected information, including the daily handling of information incidental to each assigned job function. Vendor's Personnel shall do all of the following:

- (a) Follow the rules set forth in Section 3(a)(ii) below with respect to the handling of both printed and electronic material, in any location where Vendor's Personnel perform job functions. Examples of these locations include: (1) an office, desk or work area at XYZs facilities; (2) the home workspace of those who telecommute; or (3) other places where work is done such as hotels, airports, or vehicles. Vendor Personnel who travel and find themselves working from public areas must exercise caution and increased diligence to protect XYZs information assets in these locations.
- (b) Take all of the following measures with respect to paper documents and files containing protected information:

- (i) Lock the information inside a desk, file or cabinet drawer, room, office or closet.
 - (ii) Documents containing protected information shall be immediately removed from copiers, printers and facsimile machines. These devices shall also be checked for loose documents containing protected information at the end of each day.
 - (iii) Documents containing protected information shall be disposed of only in a locked, XYZs-approved shredding bin, in accordance with XYZs Records Retention schedule. For home workspaces, documents shall be shredded daily, or kept in a locked area until they can be shredded.
 - (iv) All computers and electronic records that contain XYZs information shall be password-protect desk-top computers and mobile devices. Passwords shall be stored only in a secure location.
 - (v) Vendor's Personnel shall lock computers from unauthorized access by pressing the "Windows" key and the "L" key at the same time whenever the computer is to be unattended.
 - (vi) Vendor's Personnel shall secure laptops via laptop cable locks or in a locked drawer if left in the office overnight.
 - (vii) Vendor's Personnel shall lock electronic data storage devices inside a desk, file or cabinet drawer, room, office or closet when not in use.
 - (viii) Vendor's Personnel shall treat all XYZs computer systems as highly confidential. Vendor's Personnel with access to XYZs computer systems shall only view the information they contain when they have a legitimate business purpose. Vendor's Personnel shall not access customer or other XYZs data for personal reasons
- (c) Vendor's Personnel shall use care when discussing protected information on the telephone, during teleconferences or in-person meetings. Before disclosing protected information from a customer's file to anyone, Vendor's Personnel must verify that the disclosure is permitted or required by law, as well as properly authenticate the caller's identity **and** right to the information requested.
- (d) Vendor's Personnel shall be advised of the following types of XYZs Protected Information and trained in the proper use of them:
- (i) Confidential: Data XYZs is legally restricted from disclosing other than as permitted by law, or which by its unauthorized disclosure would adversely impact XYZs, its customers or employees. Some examples of Confidential information are:
 - Customer, employee or claimant information
 - Personnel records
 - Proprietary software & system configurations
 - Disaster recovery call-trees
 - Strategic business plans
 - Company non-public information
 - Any document labeled "Confidential"
 - (ii) Highly Confidential: Data XYZs is legally restricted from disclosing other than as permitted by law, or data which by its unauthorized disclosure would result in severe damage to XYZs. Some examples of Highly Confidential information are:
 - Executive Board information
 - Annual results (pre-publication)
 - Documents subject to attorney/client privilege
 - Any document labeled "Highly Confidential"
- (e) Mobile Devices: The term "mobile device" means any XYZs issued portable computing device with the ability to process or transmit information, such as laptop computers, Blackberries, iPhones and other smart phones, iPads and Palm devices. The term "electronic data storage device" means any device specifically designed to store electronic data, such as USB memory sticks, CD /DVD disks, tape drives and ZIP disks. Vendor's Personnel shall adhere to the following guidelines when using mobile and electronic storage devices away from a secured building:
- (i) Vendor's Personnel may not access, use or store XYZs information on any type of personal owned device
 - (ii) Laptop computers and other mobile devices capable of storing protected information are special targets for identity thieves. Vendor's Personnel shall keep these devices physically secured from loss or theft whenever they are not in use. Further, these devices shall be password protected

- (iii) Vendor's Personnel shall never allow anyone not specifically authorized by XYZs to use or otherwise have access to their mobile or electronic data storage devices
- (iv) Generally, protected information shall not be stored on USB sticks or other electronic data storage devices. If this is necessary, these devices must be encrypted and password protected
- (v) Electronic data storage devices must be physically secured from loss or theft when not in use
- (vi) Any e-mail communication that includes protected information which is sent from a mobile device over non-XYZs servers must be encrypted. This would typically involve any emails sent from locations away from the premises of a XYZs office

4. Business Ethics

XYZs is committed to the fair and ethical practices fundamental to maintaining public confidence and trust. Vendor's Personnel must adhere to the highest standards of ethical behavior in the performance of his or her duties.

5. Dress Standards

- (a) Vendor's Personnel can choose to dress in either business casual, casual, or traditional business attire. Vendor's Personnel are to always use common sense and dress in a way that is appropriate for their duties and schedule. Whether Vendor's Personnel wear business casual or casual, clothing must be clean, pressed and in good condition. Torn, dirty, or frayed clothing is unacceptable.
- (b) Casual Dress Standards
 - (i) Clothing that reveals the back, chest, stomach, underwear, spandex, or other form-fitting pants are not appropriate.
 - (ii) Examples of **acceptable** attire include:
 - SLACKS: Dockers style, kakis, corduroy, jeans, dressy capris, dress pants
 - SKIRTS: casual dresses and skirts
 - SHIRTS: casual dress, sweaters, golf
 - BLOUSES: casual and dress, all fabrics except sheer
 - FOOTWEAR: Loafers, flats, dress shoes, dress sandals (Flip-flops and sandals with full open-toe must not be worn for safety reasons), boots, dress heelsSmall clothier insignias or labels are acceptable on these items
 - (iii) Examples of unacceptable Attire:
 - ATHLETIC/WORKOUT ATTIRE of any type
 - COATS/SWEATERS: athletic jackets; windbreakers; sweater/jackets with insignias or slogans other than XYZs
 - HATS or CAPS (even XYZs branded). XYZs branded caps or caps without any insignia are acceptable for Vendor's Personnel who are required to work outside (e.g., gardeners) or where hair coverings are required (e.g., cafeteria Personnel).
 - PANTS: sweatpants; shorts; leggings or stirrup/stretch pants; overalls; jumpsuits.
 - SHIRTS: T-shirts or sweatshirts of any type; shirts with insignias/slogan (other than XYZs) or themes (theme shirts, sports teams, vacation sport etc.); bare shoulders or midriffs/sheer fabrics; tank-style tops.
 - SHOES: beach or casual sandals, flip-flops; slippers; athletic shoes, sneakers
 - SKIRTS/DRESSES: short or revealing items; sundresses; skirts

6. Electronic Communications

- (a) XYZs IT Systems ("Company IT Systems") means all technical hardware, software resources and tools that are used to electronically transmit, process, access or store the Company data or connect to the Company IT application systems. This includes smart phones, faxes, pagers, voice mail, workstations, mainframe, printers, scanners, distributed and personal computers, laptops, PDAs, any other mobile devices, storage media, e-mail, network infrastructure, network connections, mobile applications and XYZs IT applications that support the different lines of business. It also includes all data residing on or transmitted through the IT Systems.

- (b) Vendor's Personnel must apply all technical and other means provided to them to safeguard the electronic information and systems within their care and use. Vendor's Personnel are also accountable for all transactions performed under their computer user IDs.
- (c) Vendor's Personnel are granted permission by XYZs to use the IT Systems in pursuit of XYZs business objectives and are reviewed and monitored in that pursuit. XYZs IT systems shall not be used for personal use, unless expressly permitted by XYZs.
- (d) Vendor's Personnel' use of XYZs IT Systems are to ensure the continuity of business operations and prevent or minimize the damage to the business or brand resulting from unauthorized access or modifications to XYZs IT Systems and the information contained therein. Vendor's Personnel shall report any suspected or actual unauthorized access to XYZs.
- (e) Privately owned hardware and software (including, but not limited to, games, personal financial packages, and tax packages) must not be used with any XYZs IT System, unless expressly permitted by XYZs.
- (f) Passwords shall be changed on a regular basis or as scheduled by the protocol of a particular IT System. Non-compliant passwords may be rejected automatically by the System and security questions may be required to retrieve passwords.
- (g) Vendor's Personnel shall not release trade secrets or other proprietary, confidential or sensitive information belonging to XYZs, whether in electronic form or any other medium, without express consent from XYZs Corporate Legal Department.
- (h) Vendor's Personnel use of XYZs IT Systems may have access to **personal information** about the Company's customers, employees, agents, or other individuals. Vendor's Personnel shall safeguard that information against unauthorized access, acquisition, use, and disclosure as required by state and federal law.
- (i) XYZs IT Systems are intended for **business use** only. Personal use of Internet services on XYZs IT Systems shall be **kept** to a minimum and utilized during the Vendor's Personnel nonworking hours.
- U) Vendor's Personnel may **not** utilize the Internet or Apps on XYZs IT Systems to visit chat rooms, Web sites, discussion groups, newsgroups or any other site that displays, discusses or advocates topics such as pornographic material, illegal material, violence, drugs, gambling or other inappropriate topics.
- (k) All information, including e-mail messages and files, created, sent or retrieved over XYZs IT Systems is the property of XYZs, and is not the private or confidential property of Vendor's Personnel. Accordingly Vendor's Personnel shall have no expectation of privacy as to any information or files entered into, transmitted by or stored in XYZs computers, scanners, fax machines, voicemails, e-mail mobile devices or telephone systems. XYZs may monitor, intercept, review, retrieve, filter, access, audit, store or block any electronic communications or other content on its IT systems, including stored voicemail and e-mail messages, with or without the specific knowledge of Vendor's Personnel, as permitted by law, and may do so whether the messages are business-related or personal. All information including text and images may be disclosed to law enforcement or to other third parties, as permitted by law, without prior consent of the sender or receiver.

7. **Harassment/Discrimination Prevention**

XYZs through its leadership teams is committed to providing a workplace which is free from all forms of harassment, intimidation or discrimination. XYZs will not tolerate harassment or discrimination of its employees, by anyone, including any supervisor, manager, coworker, customer, vendor, or other third party.

8. **Personal Cell Phones/Personal Digital Assistant/Mobile Devices**

- (a) Vendor's Personnel are expected to exercise discretion when using personal cellular phones, PDAs, and mobile devices. Personal cell phones, PDAs or other mobile devices are to be turned off or kept on mute while in the workplace.
- (b) XYZs Contingent Workforce Policy 09-06-16 (contact: Koenraad Lecot) Page 31
- (c) Excessive personal calls during the work day can interfere with productivity and be distracting to others. As such, personal cell phones, PDAs, or other mobile devices shall not be used for personal purposes during business hours except during lunch break, break periods, and in emergency situations. When it is necessary to use a personal cell phone, PDA, or other mobile device during business hours, Vendor's Personnel shall exercise good judgment.
- (d) Vendor's Personnel have the responsibility to ensure that individuals calling them at work, such as friends and family members, are aware of XYZs policy.
- (e) XYZs is not liable for the loss of personal cellular phones, PDAs, or other mobile devices brought into the workplace.

9. Recording

- (a) XYZs strictly prohibits the use of recording devices, including cellular phones with built in cameras, either directly or indirectly through another individual, to record meetings, conversations, phone calls, or other related business and employment activities without the consent of XYZs, even if applicable laws otherwise permit such activity.
- (b) Operating any camera equipped device for recording purposes in restrooms or areas designated as private is absolutely prohibited.
- (c) Vendor's Personnel shall be aware that XYZs may find it necessary to monitor work areas with security cameras when there is a specific job or business-related reason. XYZs will only do so after first ensuring that such action is in compliance with state and federal laws. Therefore, Vendor's Personnel shall have no expectation of privacy in work-related areas.

10. Searches

- (a) As allowed under applicable law:
- (b) XYZs may require a Vendor to search at any time any of its Personnel' property, personal vehicles parked on XYZs property, personal items such as bags, purses, briefcases, backpacks, other containers, coats, jackets and sweaters, and the like. XYZs may search at any time work areas.
- (c) XYZs may search company-owned, controlled property such as offices, locked desks and lockers, as well as any contents, effects, or articles that are in company-owned or controlled property.
- (d) Because the areas in question may be searched at any time with or without the individual being present, Vendor's Personnel shall never bring anything to XYZs premises or store anything on XYZs premises that the Vendor's Personnel would not be prepared to show and turn over to their employer or XYZs representative.
- (e) Items prohibited on XYZs premises or in XYZs owned or controlled property include (as allowed to be prohibited by **applicable law**):
 - (i) Articles for which the primary use is as a weapon
 - (ii) Articles with the purpose of being used as a weapon, or are used as a weapon
 - (iii) Explosives of any kind
 - (iv) Alcohol
 - (v) Illegal drugs
 - (vi) Prescription drugs or medication not used or possessed in compliance with a current valid prescription
 - (vii) Material that is, in XYZs sole discretion, inappropriate, including material deemed to be obscene, harassing, demeaning or tending to incite violence, among other things
 - (viii) Property in the possession or control of a Vendor's Personnel who does not have the authorization from the owner of such property to possess or control the property. "Control" means knowing where a particular item is, having placed an item where it is currently located, or having any influence over its continued placement.

11. Solicitation

- (a) The types of solicitation that are not allowed during working time by Vendor's Personnel or the individuals being solicited include, but are not limited to:
 - (i) circulating or signing of petitions
 - (ii) collecting money, goods, or gifts for community, religion, or political groups
 - (iii) handing out or delivering membership cards or applications **for** any organizations
 - (iv) passing out or posting flyers, surveys, literature, or non-company material
 - (v) selling raffle tickets, gambling betting pools are only permitted in accordance with Company policy
 - (vi) soliciting memberships, fees, or dues
 - (vii) use of employee bulletin boards
 - (viii) using XYZs property or XYZs equipment to solicit other employees or customers or distribute information that isn't work-related
 - (ix) Solicitation, distribution of literature, or signing of petitions in any area on XYZs property is prohibited unless he/she has the approval of XYZs.
- (b) Work areas are defined as:
 - (i) all areas within the confines of XYZs leased or owned space
 - (ii) cafeterias

- (iii) elevators
- (iv) break rooms
- (v) assigned work areas
- (vi) fitness rooms
- (vii) hallways
- (viii) offices
- (ix) production floor
- (x) restrooms

- (c) XYZs defines working time as all the time Vendor's Personnel are on the premises or performing work for XYZs except:
 - (i) break periods
 - (ii) meal periods

12. Tobacco Free

- (a) XYZs is committed to a healthy environment that contributes to all Personnel' well-being and a positive work environment. This policy details the restrictions on tobacco use, including smoking, smokeless tobacco, and using any device simulating the likeness of smoking, in all XYZs-owned and leased space.
- (b) XYZs provides a tobacco free environment and prohibits the use of tobacco products on all Company Property. The definition of Company property for the purpose of this policy includes all land, buildings, structures, parking lots, means of transportation owned by or leased to the Company and customer property, where anyone is engaged in XYZs business. The use of tobacco is only permitted in areas designated by **XYZs**.
- (c) Vendor's Personnel may be permitted to smoke, use smokeless tobacco, or any device that simulates the likeness of smoking during meal and break periods, but only in in designated areas. Vendor's Personnel shall check with their Vendor supervisor for the location of designated smoking and smokeless tobacco areas. At the discretion of XYZs and in accordance with state and local laws, offices may implement tobacco free campuses, meaning, smoking, use of smokeless tobacco products, and/or devices that simulate smoking are strictly prohibited in indoor and outdoor spaces, including parking lots.

13. Workplace Safety violence and Weapons Prevention

- (a) XYZs is committed to providing Personnel with a workplace that is safe and free of violence or the threat of violence. XYZs prohibits the possession of weapons by anyone in the workplace or while using a Company vehicle, conducting Company business, or otherwise representing the Company in a professional or business capacity; and the Company will respond appropriately to any breach of this policy and take action to ensure the maintenance of a safe, violence free, respectful workplace.
- (b) Vendor Personnel who are working from a XYZs location shall be familiar with the safety training information on XYZs Today > Reference > Workplace Safety. This website has general safety information such as working ergonomically, accident prevention, and specific fire safety information for each work location. Some work locations have required fire safety training. Staffing suppliers shall ensure that their Personnel are familiar with this safety information if they work from a XYZs office.

14. Questions

Vendor's Personnel shall refer any questions they have about XYZs Vendor Workplace Principles to their employer.

15. Actions

Violations by a Vendor's Personnel of any of XYZs Vendor Personnel Principles will be reported to XYZs Contingent Workforce Management Office via USW_CWM@XYZsinsurance.com.

**EXHIBIT A
WORK ORDER#
PURSUANT TO
MASTER DEFINED PROJECT SERVICES AGREEMENT
DATED _____AND CURRENTLY IN EFFECT BETWEEN XYZS GROUP, INC
(AND AFFILIATES) AND _____(VENDOR).**

1. **STARTDATE:**_____ **ENDDATE:**

2. **PROJECT TITLE:**
3. **BRIEF PROJECT DESCRIPTION:**
4. **PARTIES TO THIS WORK ORDER:**
 - (a) XYZs Group, Inc. or the following FGI affiliate: _____
 - (b) Vendor:_____
5. **DETAILED DESCRIPTION OF SERVICES**
6. **ESTIMATED RESOURCE REQUIREMENTS**
7. **DELIVERABLES (INCLUDING DELIVERABLE SCHEDULE]**
8. **ACCEPTANCE CRITERIA**
9. **NAMED SUBCONTRACTOR**
10. **TOTAL FEES AND PAYMENT SCHEDULE, INCLUDING ALL ESTIMATED TAXES** other than
sales tax, use tax or any other similar taxes if applicable.
11. **ACCOUNT MANAGER [VENDOR ACCOUNT MANAGER NAME]**
[PHONE]
[EMAIL]
12. **OPERATIONAL MANAGER:** [VENDOR OPERATIONAL MANAGER NAME]
[PHONE]
[EMAIL]
13. **REIMBURSABLE TRAVEL AND OTHER EXPENSES**
14. **TERMINATION PROVISIONS**
15. **OTHER APPLICABLE PROVISIONS:**
 - (t) **Modification ofMSA Terms**
 - (g) **Defined Milestones**
 - (h) **Location of Services**
 - (i) **Applicable Industry Standards**
 - (j) **Special Requirements**
 - (k) **XYZs Obligations**

(I) Service Level Agreements

XYZS GROUP, INC. (or affiliate specified above)

By: _____

By: _____

Print Name: _____

Print Name: _____

Title: _____

Title: _____

Date: _____

Date: _____

EXHIBIT B
VENDOR'S SCREENING OBLIGATIONS

- (1) Work Experience and Training. In order to ensure that only qualified Staff perform Services with respect to XYZs Projects, Vendor shall use, at a minimum, reference checking and thorough interviewing, including as applicable:
- (A) In the case of testing conducted by Vendor, use of valid testing instruments which do not create adverse impact on the basis of race or any other protected classification; and
 - (B) Vendor shall verify Staff work experience and qualifications by requiring each Staff Member to provide references and proof of any necessary licenses/credentials.
- (2) U.S. Background Checks. For all Staff Members performing work in the United States for XYZs, Vendor will complete, at no cost to XYZs, the following background screening at least 5 business days before the Staff Member begins an assignment. With written approval from XYZs, Vendor may allow a Staff Member to start an assignment before completing the checks. If a Staff Member fails the checks, Vendor will promptly notify XYZs and remove the Staff Member. If the below checks have been completed for a particular Staff Member within the last 12 months those checks do not need to be repeated. The following _Background checks shall be conducted for U.S. based Staff Member\$;:_
- (A) Seven-Year County Criminal Background Check: Must include felony/misdemeanor county criminal record searches in the county in which the Staff Member candidate currently resides, as well as all counties in which the candidate has lived, worked, or attended school, during the last seven (7) years. Must include all names the Staff Member has used.
 - (B) Seven-Year **Federal Criminal Background Check: Conducted by Federal District** based on the Staff Member candidate's residence history, work history, and school locations. Must include all names the Staff Member has used.
 - (C) Education Verification: Verifies the type of diploma of the highest degree and dates of attendance/graduation.
 - (D) Social Security Trace: Address and name search generated using SSN.
 - (E) Government Watch List: Multiple government databases associated with global terrorism, narcotics, trafficking, and those barred from contracting with government agencies including the Office of Foreign Assets Control.
 - (F) National Sex Offender: Identifies individuals associated with sex related crimes.
 - (G) Professional License Verification: Verifies professional or technical licensing (license number, issue date, expiration date, and current status). The highest completed education should be verified.
 - (H) Failure Criteria: Vendor will not place any Staff Member with the following background findings:
 - (i) County Criminal Background: Guilty plea or conviction of any felony, theft, fraud, dishonesty of any nature, breach of trust, violent crime, or more than one criminal offense, or under the Violent Crime Control and Law Enforcement Act of 1994 (18 U.S.C. sec. 1033), as amended.
 - {ii) Federal Criminal Background Check: Guilty plea or conviction of any felony, theft, fraud, dishonesty of any nature, breach of trust, violent crime, or more than one criminal offense,

or any offense under the Violent Crime Control and Law Enforcement Act of 1994 (18 U.S.C. sec. 1033), as amended.

- (iii) Education Verification: Falsification of degree or highest level of education attained.
- (iv) Social Security Trace: Failure to confirm positive identification.
- (v) Government Watch List: Identified in a search of any government watch list searched pursuant to Section 2(f)(2)(E), above.
- (vi) Sex Offender: Identified in a search of any sex offender database searched pursuant to Section 2(f)(2)(F), above.
- (vii) Professional License Verification: Falsification of licenses and certifications or inability to provide proof.

- (3) India Background Checks. For all Staff Members performing work in India for XYZs, Vendor will complete, at no cost to XYZs, the following background screening at least 5 business days before the Staff Member begins an assignment. With written approval of XYZs, Vendor may allow a Staff Member to start an assignment before completing the checks. If a Staff Member fails the checks, Vendor will promptly notify XYZs and remove the Staff Member. If the below checks have been completed for a particular Staff Member within the last 12 months those checks do not need to be repeated. The following background checks shall be conducted for India-based Staff Members:

Categorv	Checks	Details
Education	Highest Education	Highest Qualification is verified with the University basis the roll number on the mark sheet.
Employment	Previous Employment	Previous employment details verification. Components- Employer Name, Tenure, Designation, CTC(if possible), Reason of leaving, Eligibility for rehire
Address Check	Permanent Address Check	Permanent Address is Verified by a physical visit
India Database Check - Criminal	India Database Checks	1. India Specific Media Searches 2. Reserve Bank of India Loan Defaulters List 3. Cross Directorships Database 4. Corrupt Officers Database 5. India Specific Internet Searches 6. Civil Court Action 7. Directorships Watch List 8. High Court Cases 9. Supreme Court Cases 10. All other available crime databases

Certificate Of Completion

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David Weber

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Strategic Sourcing and Procurement Manager XYZs Group, Inc.

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Corporate SVP & Head of Sales NA

ABC NA Inc

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- The consequences of your withdrawing consent for online documents will be that transactions may take a longer time to process..

Required hardware and software

Operating Systems:	Windows2000? or WindowsXP?
Browsers (for SENDERS):	Internet Explorer 6.0? or above
Browsers (for SIGNERS):	Internet Explorer 6.0?, Mozilla Firefox 1.0, Netscape 7.2 (or above)
Email:	Access to a valid email account
Screen Resolution:	800 x 600 minimum
Enabled Security Settings:	Allow per session cookies Users accessing the internet behind a Proxy Server must enable HTTP I. I settings via proxy connection

** These minimum requirements are subject to change. If these requirements change, we will provide you with an email message at the email address we have on file for you at that time

providing you with the revised hardware and software requirements, at which time you will have the right to withdraw your consent.

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To confirm to us that you can access this information electronically, which will be similar to other electronic notices and disclosures that we will provide to you, please verify that you were able to read this electronic disclosure and that you also were able to print on paper or electronically save this page for your future reference and access or that you were able to e-mail this disclosure and consent to an address where you will be able to print on paper or save it for your future reference and access. Further, if you consent to receiving notices and disclosures exclusively in electronic format on the terms and conditions described above, please let us know by clicking the 'I agree' button below.

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